

The Rise, Risk, and Necessity of Criminal Law Impunity

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Abstract

Despite criminal law's record of excessive enforcement and mass incarceration, impunity—exemption for the guilty from accountability—remains a critical and routine feature of criminal law administration. All three branches dispense impunity, but foremost are the executive powers of pardons and prosecutorial discretion. Impunity gives priority to other important public interests over the interest in punishing culpable wrongdoers. In the right circumstances, impunity helps to sustain criminal law's legitimacy. This is most apparent in the tradition, from Washington through Trump, of presidential pardons intended to foster “national reconciliation” in periods of sharp political polarization. Presidents repeatedly recognize that when the polity is deeply divided over issues related to criminal wrongdoing, prosecuting even those guilty of serious crimes can undermine criminal law's legitimacy, exacerbate social divisions, and threaten civic peace. In such circumstances, criminal law enforcement loses its capacity to reinforce social cohesion and shared norms. Criminal law's legitimacy depends not simply on fair enforcement but on forgoing punishment even for serious crimes. Impunity rather than accountability becomes the path to political reconciliation.

After defending this account of impunity's role, the Article reassesses three recent controversies: Trump's January 6 pardons, the federal prosecutions of Trump, and the Supreme Court's recognition of presidential immunity. In all three cases, arguments for impunity were stronger than critics acknowledge. But the lessons of reconciliation policies, and of criminal law's perverse effects in polarized polities, suggest that each was notably flawed. Biden, not Trump, should have pardoned January 6 offenders. Prosecuting Trump in a context of deep partisan dissension had the polarizing effect that past presidents foresaw in pardon statements. And while Trump v. United States rightly recognized that political dysfunction can justify presidential impunity, it wrongly foreclosed any role for the political branches in making that judgment.

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I. INTRODUCTION

For decades, central concerns of criminal law scholarship and policy debates have focused on too much, and unjustly distributed, criminal law enforcement: overcriminalization, mass incarceration, racial bias, and selective prosecution.¹ But lately a diverse set of powers and policies that cut in the other direction are newly resurgent—powers that grant impunity from criminal liability. These mechanisms are diverse, but all foreclose prosecution or punishment for provable criminal wrongdoing. The most notable examples include presidential grants of clemency, presidential immunity, and executive branch policies that insulate some offenders from prosecution. Until recently,

¹ See, e.g., JOHN F. PFAFF, *LOCKED IN: THE TRUE CAUSES OF MASS INCARCERATION—AND HOW TO ACHIEVE REAL REFORM* (2017); Michelle Alexander, *THE NEW JIM CROW: MASS INCARCERATION IN THE AGE OF COLORBLINDNESS* (2012); Douglas Husak, *OVERCRIMINALIZATION: THE LIMITS OF THE CRIMINAL LAW* (2009); Jonathan Simon, *GOVERNING THROUGH CRIME: HOW THE WAR ON CRIME TRANSFORMED AMERICAN DEMOCRACY AND CREATED A CULTURE OF FEAR* (2009); Shima Baradaran Baughman & Megan S. Wright, *Prosecutors and Mass Incarceration*, 94 S. Cal. L. Rev. 1123 (2021); William J. Stuntz, *The Pathological Politics of Criminal Law*, 100 Mich L. Rev. 505 (2001). For U.S. incarceration rates in the context of other national rates, see Helen Fair & Roy Walmsley, *World Prison Population List* 6, tbl. 2 (14th ed. 2024) (reporting U.S. prison population as world’s highest and imprisonment *rate* as sixth highest).

scholars lamented that at the pardon power had fallen into near desuetude; pardons are on a remarkable upsurge.² The Supreme Court, in *Trump v. United States*, granted presidents complete, lifetime immunity for crimes committed through their official acts. And Trump administration officials have promised “immunity”—more accurately, a policy of declining to enforce criminal law—for federal law enforcement agents’ wrongdoing committed in the course of their duties.³

All these developments have drawn heated objections. All have been criticized as unjustified, or simply unjust, grants of impunity to culpable wrongdoers who should be held to account; President Trump’s mass pardon of January 6 Capitol rioters—or President Biden’s pardons for his family—are hardly unique in this respect.⁴ Scholars have sharply criticized the Supreme Court’s recognition in *Trump v. United States* of presidential immunity.⁵ The same is true of policies declining to prosecute certain offenses or offenders, including the Trump administration’s posture toward immigration agents.⁶ That nonprosecution posture has a parallel at the state level in the much-

² See Office of the Pardon Attorney, U.S. Dep’t of Justice, *Clemency Grants by President Donald J. Trump (2025-Present)* at <https://www.justice.gov/pardon/clemency-grants-president-donald-j-trump-2025-present> (listing more than 1,800 pardons as of January 2026); John Gramlich, *Biden granted more acts of clemency than any prior president*, Pew Res. Center, Feb. 7, 2025 (noting Biden granted 80 pardons and 4,165 commutations).

³ Glenn Thrush, *F.B.I.’s Inquiry Into ICE Shooting Faces Doubts After White House’s Remarks*, N.Y. Times, Jan. 10, 2026 (in the wake of a citizen being fatally shot by a immigrant agent, Vice President JD Vance stated that federal agents have “absolute immunity” from prosecution). Dep’t Homeland Sec., X Post, Jan. 13, 2026 (posting transcript of White House advisor Stephen Miller’s public statement, ““To all ICE officers: You have federal immunity in the conduct of your duties.”). Vance subsequently backtracked and denied his earlier assertion. See Allan Smith & Henry J. Gomez, *Vance says Minneapolis will be ‘less chaotic’ if local officials cooperate more with ICE*, NBC News, Jan. 22, 2026 (quoting Vance saying, “[w]hat I did say is that when federal law enforcement officers violate the law, that is typically something that federal officials would look into”).

⁴ See Lee Kovarsky, *Patronage Pardons* (2026 draft, forthcoming). For Biden family pardons, see Joseph Biden, *Executive Grant of Clemency* (Jan. 19, 2025) (full pardons for five Biden family members); Joseph Biden, *Executive Grant of Clemency* (Dec. 1, 2024) (full pardon for Hunter Biden).

⁵ See sources cited *infra* note 166.

⁶ For a sample of non-scholarly commentary, see Lydia Polgreen, David French & Michelle Goldberg, *‘We Are Creating the Conditions for a Catastrophe.’ Three Columnists on Minneapolis*, N.Y. Times, Jan. 26, 2026.

debated policies of “progressive” prosecutors who decline to enforce selected offenses.

A standard concern is that, through any of these means, impunity encourages criminal conduct by enabling the guilty—whether presidents or pardon recipients—to avoid accountability. But that is true only in some circumstances, which is why impunity is sometimes uncontroversial. Yet impunity for the guilty is also integral to criminal law administration and always has been. Longstanding impunity policies constrain the reach of criminal law, and discretionary powers to grant impunity case-by-case are features of the federal and every state legal system. Recent presidents have employed clemency redress (if only modestly) the criminal legal system’s familiar problems of racially biased enforcement and overly harsh sentences.⁷ Prosecutors have complete discretion not to file charges even when they can prove a wrongdoer’s guilt, and doing so is often uncontroversial. Courts dismiss criminal charges with prejudice as a remedy for constitutional and other violations, precluding convictions of the guilty. Congress authorizes immunity both narrowly targeted (for cooperating witnesses) and categorical (for diplomats). Both policies trade punishment of the guilty for other public ends—information disclosure⁸ or “friendly relations among nations.”⁹ International extradition treaties authorize nation states to prevent prosecutions by refusing to hand over persons sought for “political offenses.”¹⁰ Impunity attaches both

⁷ See U.S. Dep’t of Justice, *Obama Administration Clemency Initiative* (noting 1,715 sentence commutations) at <https://www.justice.gov/archives/pardon/obama-administration-clemency-initiative>. U.S. Dep’t of Justice, *Commutations Granted by President Joseph Biden (2021-2025)* (reporting 4,165 commutations), at <https://www.justice.gov/pardon/commutations-granted-president-joseph-biden-2021-2025>.

⁸ See 18 U.S.C. § 6003 (authorizing immunity to compel “testimony or other information ... [that] may be necessary to the public interest”).

⁹ Vienna Convention on Diplomatic Relations, Preamble, 23 U.S.T. 3227, 500 U.N.T.S. 95 (1961; entered into force April 24, 1964; entered into force with respect to the United States Dec.13, 1972) (hereinafter VCDR).

¹⁰ See, e.g., Extradition Treaty between the Government of the United Kingdom of Great Britain and Northern Ireland and the Government of the United States of America, March 31, 2003, Art. IV (entered into force April 26, 2007) (political offenses exempted). See also *United States v. Quinn*, 783 F.2d 776 (9th Cir. 1986) (describing the “uprising” and “incident”

to modest offenses such as drug possession and the gravest, including assault, homicide, large-scale financial fraud, and—recurrently across two centuries of U.S. history—insurrection.

Impunity thus presents something of a puzzle largely unexamined in criminal law scholarship. Grants of impunity pose a challenge to criminal law's *legality*, meaning both criminal law's commitment to justly punishing wrongdoers and its larger commitment to operating based on legal rules, principles, and values rather than on political discretion. At the same time, impunity is critical to criminal law's *legitimacy*. One point of this Article is to suggest that therein lies no contradiction. Criminal law's legitimacy is not solely a function of fair administration in service of the goal holding the guilty to account. Contrary to retributivist theories that insist on punishing all culpable wrongdoers, criminal law's legitimacy depends on discretionary decisions to forgo enforcement in some circumstances. Impunity practices and their justifications confirm that competing public interests outside of criminal law theory often must take precedence over criminal law's commitment to retributive punishment. Criteria for enforcement cannot be restricted to criminal law's foundational principles; the durability of impunity mechanisms confirms they never have been. Even just criminal law enforcement sometimes conflicts with other state interests.

Yet criminal law's legitimacy, and efficacy, can be undermined by unjustified grants of impunity. Those can occur (or seem to) in two ways—disputes about justifications and abuse of power. Criteria for impunity resist consensus and are hard to generalize across contexts. For example, several presidents have pardoned domestic insurrectionists, Civil War Confederates,

doctrines defining “political offenses” that are not subject to extradition); *United States v. Pitawanakwat*, 120 F. Supp. 2d 921 (D. Or. 2000) (applying same to deny extradition request). Also, domestic extradition law permits state officials to frustrate other states' prosecutions by refusing to extradite “non-fugitive” suspects. See Darryl K. Brown, *Extraterritorial Enforcement of State Criminal Law, post-Dobbs*, 113 J. Crim. L. & Criminology 853 (2024) (overview of interstate extradition law).

and draft dodgers or military deserters in the wake of wars.¹¹ Generally, they do so in response to social “divisiveness,” or to facilitate domestic “tranquility” or “national reconciliation”¹²—a purpose President Trump cited for his pardons of January 6 offenders.¹³ Analogously, other nations have granted amnesty in exchange for acceptance of peace agreements or information disclosure to truth and reconciliation commissions.¹⁴ Justifications for impunity are always disputed, because the decision is a deeply political one between incommensurable values. For that reason, political officials control the key impunity powers—pardons and prosecutorial declination.

Because impunity is often contested and politically fraught, government branches sometimes struggle over its control. Legislatures regulate prosecutorial discretion to dictate more impunity for some crimes and less for others. Prosecution declination policies challenge legislatures’ choices of what to criminalize and how to punish. *Trump v. United States* can be read as manifesting the Supreme Court’s distrust of the executive branch’s power to choose between impunity and criminal accountability for presidential crimes. Recent presidential pardons manifest distrust of rival political parties’ control of federal law enforcement. And all branches pay attention to public distrust or rejection of criminal law enforcement in specific, contentious circumstances.

This article uses impunity as a lens to help to clarify the criteria at play in the distribution of criminal law enforcement, which are easily missed by a

¹¹ See discussion *infra* Part III.B.2.a.

¹² See generally GRAHAM G. DODDS, MASS PARDONS IN AMERICA: REBELLION, PRESIDENTIAL AMNESTY, AND RECONCILIATION 149 (2021) (describing the history of presidential pardons for the purpose of reconciliation, typically in the wake of domestic rebellions or wars). See *infra* Part III.B. (discussing presidents’ reconciliation pardons).

¹³ Pres. Trump, Proclamation 10887, *Granting Pardons and Commutation of Sentences for Certain Offenses Relating to the Events at or Near the United States Capitol on January 6, 2021*, 90 Fed. Reg. 8331 (Jan. 20, 2025).

¹⁴ For a description of South Africa’s Truth and Reconciliation Commission and an assessment of the role of amnesty in it, see Antje du Bois-Pedain, *Post-Conflict Accountability and the Demands of Justice: Can Conditional Amnesties Take the Place of Criminal Prosecutions?*, in CRITICAL PERSPECTIVES IN TRANSITIONAL JUSTICE 459 (Nicola Palmer, Phil Clark & Danielle Granville eds. 2020); TRUTH AND RECONCILIATION IN SOUTH AFRICA: DID THE TRC DELIVER? (Hugo Van der Merwe & Audrey R. Chapman eds. 2008).

narrow focus on the merits of particular pardons, nonprosecution decisions, or immunity rules. Considering these impunity mechanisms together helps us evaluate a range of disputes about the function and propriety of criminal liability in different political and social contexts. It highlights the commonality among such distinct practices as pardoning wartime draft dodgers and January 6 Capitol riot offenders.

Part II surveys policies and practices for and against impunity in federal and state law, policy debates, and scholarship. The basic picture, reflected also in international law, is presumptive disfavor of impunity coupled with widespread recognition for exceptions that justify impunity to serve various public interests. Recognition of those interests is sometimes politically fraught and always context specific, but the core insight is that the need, in specific circumstances, to grant impunity is widely acknowledged as a justified public good.

After briefly describing ways that legislatures authorize, compel, and restrict criminal impunity, Part III focuses on the executive powers of pardon and prosecutorial discretion. The most important tradition, which has a long history in presidential pardons, dispenses impunity even for the gravest offenses (including treason) when social and political conditions deny criminal law its capacity to reaffirm the rule of law and shared understandings of wrongdoing. Repeatedly in U.S. history, presidents (and less visibly prosecutors) have recognized that when the polity is deeply polarized over issues related criminal wrongdoing, criminal law loses legitimacy; its enforcement in those circumstances aggravate social divisions and undermine civil peace. The final sections of Part III then leverage these insights to reassess three recent, controversial choices between impunity and accountability: pardons for January 6 Capitol riot participants; the prosecution of then-former President Trump; and recognition of presidential immunity in *Trump v. United States*. I argue that some form of impunity was justified in all three cases, for reasons that closely track an important tradition of

presidential pardons in the name of national reconciliation. In the first and last instances, however, its implementation was deeply flawed.

II. IMPUNITY AND ANTI-IMPUNITY LAW AND POLICY

This Part first provides a brief overview of the range of impunity powers and policies, which the next Part considers in more detail. It then examines the deep, sometimes intractable tensions in decisions about whether impunity for the guilty is justified in service of other compelling state interests.

A. *Mechanisms of impunity*

Criminal law impunity, defined as exemption from prosecution or punishment despite plausible (or clear) evidence of guilt, can be granted through distinct powers exercised by all three branches of government. Congress does so in several ways. It has compelled federal impunity for certain drug offenses by prohibiting the Justice Department from expending resources to prosecute such crimes in some circumstances, effectively dictating prosecutorial declination.¹⁵ It has also authorized immunity for persons providing information to all three branches of government.¹⁶ And by treaties and statutes, Congress provides immunity to foreign diplomats serving in the United States,¹⁷ and it empowers the courts and the executive to deny extradition requests from countries seeking prosecute someone for a “political offense” or for conduct not criminalized in the United States.¹⁸

Courts can grant impunity to defendants by dismissing criminal charges with prejudice, which they do, for example, in extreme cases of prosecutorial misconduct.¹⁹ And the Supreme Court in *Trump v. United States* granted

¹⁵ See discussion *infra* Part III.C.

¹⁶ 18 U.S.C. §§ 6002-6005 (2024) (providing for immunity for testimony before courts, agencies, and Congress).

¹⁷ See discussion *infra* Part III.E.2.

¹⁸ See *United States v. Quinn*, 783 F.2d 776 (9th Cir. 1986) (describing the “uprising” and “incident” doctrines defining “political offenses” not subject to extradition); *United States v. Pitawanakwat*, 120 F. Supp. 2d 921 (D. Or. 2000) (applying same to deny extradition request).

¹⁹ See, e.g., *United States v. Chapman*, 524 F.3d 1073, 1083-85 (9th Cir. 2008) (affirming dismissal with prejudice based on prosecutors’ “‘flagrant’ prosecutorial misconduct” regarding

impunity to presidents by defining lifetime presidential immunity for offenses committed through official acts.²⁰ While not strictly speaking a prerogative power, the Supreme Court's authority to create constitutional doctrine is functionally close; the Court has wide (and effectively unreversible) discretion to craft constitutional law.

Two executive branch powers are the most significant because they allow case-by-case discretion to grant complete impunity for any federal offense. Prosecutors have complete discretion not to charge in any case as well as to grant (or impose) immunity under federal law.²¹ And the president has plenary power to pardon any federal offense even before criminal charges are

constitutional disclosure obligations); *Darden v. Wainwright*, 477 U.S. 168, 181 (1986) (prosecutorial misconduct may result in mistrial or reversal of conviction if the government's improprieties "so infect the trial with unfairness as to make the resulting conviction a denial of due process."). For state law example, see Julia Jacobs, '*Signs of Scorching Prejudice*' *Doomed the Case Against Alec Baldwin*, N.Y. [Times](#), July 13, 2024 (describing state court manslaughter charge dismissed with prejudice due to prosecutorial misconduct).

²⁰ *Trump v. United States*, 2024 U.S. LEXIS 2886 (2024).

One could add jury nullification to this list of impunity mechanisms. I largely leave it aside here for several reasons, including the difficulty of determining whether a jury acquittal is an act of nullification (i.e., refusing to convict despite concluding the evidence proves the defendant's guilt), and that the nullification power is properly understood as a residual implication of the bar on overturning jury acquittals rather than a power affirmatively granted to juries. For a discussion analogizing some prosecutorial nonenforcement decisions to jury nullification, see W. Kerrel Murray, *Populist Prosecutor Nullification*, 96 NYU L. Rev. 173 (2021).

²¹ See *United States v. Fokker Servs. B.V.* 818 F.3d 733, 737-41, 743, 750 (D.C. Cir. 2016) (describing "settled constitutional understandings under which authority over criminal charging decisions resides fundamentally with the Executive, without the involvement of—and without oversight power in—the Judiciary.... [C]ourts generally lack authority to second-guess the prosecution's constitutionally rooted exercise of charging discretion."); 18 U.S.C. §§ 6002-6003 (2024) (prosecutor's power to grant immunity).

filed.²² All state prosecutors enjoy the same charging discretion, and most governors have (or share) pardon power.²³

There are significant differences in the scope and effect of these mechanisms,²⁴ but those differences largely don't matter here. The key point is that all these mechanisms grant impunity in the basic sense of the term—ineligibility for, or protection from, prosecution or punishment.²⁵

B. Anti-Impunity Policies and Anti-Impunity Criticisms

The normative valence of impunity varies. Occasionally it is positive, as when the Supreme Court observed that a member of Congress “enjoys complete

²² U.S. Const., art. II § 2 (president's power “to grant Reprieves and Pardons”). Whether criminal *amnesty* is distinct from the pardon power is unclear in U.S. law, because Congress's power to grant criminal amnesties through legislation is uncertain. In U.S. usage, “amnesty” from criminal liability usually describes presidential pardons granted to groups of offenders. See discussion *infra* Part III.C. For a standard definition of amnesty, see Mark Freeman, *Necessary Evils: Amnesties and the Search for Justice* 13 (2009):

Amnesty is an extraordinary legal measure whose primary function is to remove the prospect and consequences of criminal liability for designated individuals or classes of persons in respect of designated types of offenses irrespective of whether the persons concerned have been tried for such offenses in a court of law.

See also *Ex parte Garland*, 71 U.S. (4 Wall.) 333, 351 (1866) (“It may be said generally, we think, that pardon is usually granted to an individual; amnesty to a class of persons, or to a whole community.”).

²³ See, e.g., Ga. Const. art. IV § 2 (defining constitutional role of State Board of Pardon and Paroles); Tex. Const. art. IV § 11 (same); Fla. Const. art. IV § 8 (governor may grant pardons “with the approval of two members of the cabinet” but reserving to the legislature the power to pardon for treason).

²⁴ For example, prosecutorial declination decisions can be reversed at the prosecutor's discretion, while grants of immunity (granted by judicial order) and pardons (granted by executive orders) cannot. Statutory immunity is limited to “use immunity;” it prohibits government use of information disclosed by the immunized person, but not necessarily immunity from prosecution for the conduct described in the immunized disclosure. See 18 U.S.C. §§ 6002-6005 (2022); *Kastigar v. United States*, 406 U.S. 441 (1972) (holding that immunity under 18 U.S.C. § 6002 provides only use immunity, not transactional immunity). Pardons provide transactional immunity, that is, immunity for specific criminal conduct. See *id.* at 462 (analogizing amnesty with transactional immunity).

²⁵ Civil liability impunity, such as absolute immunity for prosecutors, legislators, and judges and qualified immunity for police officers, is excluded here. See *Pierson v. Ray*, 386 U.S. 547, 554-55 (1967) (judicial immunity); *Bogan v. Scott-Harris*, 523 U.S. 44, 47-48 (1998) (legislative immunity); *Tenney v. Brandhove*, 341 U.S. 367, 376 (1951) (same); *Imbler v. Pachtman*, 424 U.S. 409, 421 (1976) (prosecutorial immunity). For an overview of qualified and absolute immunity doctrines, see John C. Jeffries Jr., *The Liability Rule for Constitutional Torts*, 99 Va. L. Rev. 207 (2013).

impunity” for statements on the House or Senate floor²⁶ or that the press and public “who see and hear what transpired [in a courtroom] can report it with impunity.”²⁷ More often, it is negative, as in the Court’s observation that “courts ... cannot be treated disrespectfully with impunity;”²⁸ in Congress’s declaration of U.S. policy to “combat transnational criminal activities, corruption, and impunity” in the Americas;²⁹ and in executive orders encouraging or requiring U.S. support for anti-impunity policies in international bodies and in other countries, especially with regard to public corruption and human rights violations.³⁰

Much in U.S. criminal law policy reflects an anti-impunity norm. Department of Justice policy, for example, has long stated that prosecutors

²⁶ Gravel v. United States, 408 U.S. 606 (1972) (interpreting the Speech and Debate Clause); see also Kilbourn v. Thompson, 103 U.S. 168, 202 (1880) (“For speeches made in Parliament by a member to the prejudice of any other person ... that member enjoys complete impunity.”).

²⁷ Craig v. Harney, 331 U.S. 367 (1947).

²⁸ Illinois v. Allen, 397 U.S. 337, 346 (1970) (holding a criminal defendant can forfeit his right to be present at his trial by disruptive courtroom behavior).

²⁹ Organization of American States Legislative Engagement Act of 2020 § 4(2), Pub. L. 116-343, 134 Stat. 5136 (Jan. 13, 2021); see also Paniagua-Morales v. Guatemala, IACtHR ¶ 173 (Mar. 8, 1998) (“impunity mean[s] the total lack of investigation, prosecution, capture, trial and conviction of those responsible for violations of the rights protected by the American Convention”). Domestic judicial uses as well as more often negative. See, e.g., Bryson v. United States, 396 U.S. 64, 72 (1969) (“A citizen may decline to answer the [government’s] question, or answer it honestly, but he cannot with impunity knowingly and willfully answer with a falsehood.”). See also Hyman Gross, *Crime and Punishment: A Concise Moral Critique* 2 (2012) (defining impunity being “allowed to commit a crime without being called to account, and without a reason for that dispensation that is recognized as legitimate in the legal system”).

³⁰ See, e.g., Pres. Mem. of Nov. 28, 2022, 87 Fed. Reg. 74485, (establishing U.S. policy to use “all tools available, including legal, policy, diplomatic, and financial tools ... to address impunity and increase accountability” for “conflict-related sexual violence”); Organization of American States Legislative Engagement Act of 2020, P.L. 116-343, 134 Stat. 5136 (Jan. 13, 2021) (affirming “the United States should support efforts to ensure the effectiveness and independence of OAS initiatives to combat corruption and impunity in the Americas” and requiring the Secretary of State to summarize for Congress “steps taken by the United States Mission to the OAS to strengthen anti-corruption and anti-impunity efforts in the Americas”); Pres. Mem. of Oct. 26, 2020, 85 Fed. Reg. 71213 (certifying, pursuant to Comprehensive Peace in Sudan Act of 2004, that Sudan has, inter alia, “committed to holding accountable under the law those responsible for all crimes committed against the Sudanese people since 1989, ... including bringing perpetrators before national and international courts under the principle of no impunity”); Ex. Or. No. 13729 of May 18, 2016, 81 Fed. Reg. 32611 (establishing interagency Atrocities Prevention Board to, inter alia, “promote accountability of and deny impunity for perpetrators of mass atrocities”).

presumptively must charge “the most serious, readily provable offense.”³¹ Federal statutes prioritize prosecution as the means to deter specific kinds of wrongdoing.³² The United States has used its considerable leverage with other countries to expand U.S. capacity to prosecute crimes committed outside U.S. territory related to terrorism, drug trafficking, public corruption and other transnational criminal activity.³³ And federal policy endorses anti-impunity goals defined in various treaties.³⁴ Anti-impunity norms also find support in constitutional arguments. Moreover, in constitutional law debates, some scholars take the view that the federal executive’s obligation under the Take

³¹ See U.S. Dept. of Justice, *Justice Manual* § 9-27.300 (“prosecutor must select the most appropriate charges. Ordinarily, those charges will include the most serious offense”); Bruce Green & Ellen Yaroshefsky, *Prosecutorial Accountability 2.0*, 92 Notre Dame L. Rev. 51, 91 (2016) (quoting a stronger version of this policy adopted in 1997). Various administrations have sharpened or moderated the “most serious charge” policy. Compare Memorandum from Eric Holder, Jr., Att’y Gen. of the United States, to the U.S. Att’ys & Assistant Att’y Gen. for the Criminal Div. 1 (Aug. 12, 2013) (refining the DOJ’s “charging policy regarding mandatory minimums for certain nonviolent, low-level drug offenders”) with Memorandum from Attorney General John Ashcroft on Department Policy Concerning Charging Criminal Offenses, Disposition of Charges, and Sentencing to All Federal Prosecutors (Sept. 22, 2003) (requiring federal prosecutors to “charge and pursue the most serious, readily provable offense or offenses”)

³² See, e.g., 22 U.S.C. § 7101(b)(24) (2024) (“Trafficking in persons is a transnational crime with national implications. To deter international trafficking and bring its perpetrators to justice, nations including the United States must recognize that trafficking is a serious offense. This is done by prescribing appropriate punishment [and] giving priority to the prosecution of trafficking offenses....”)

³³ See Darryl K. Brown, *Extraterritorial Ambit through Offence Definitions, Technology and Economic Power*, in TRANSFORMATIONS IN CRIMINAL JURISDICTION: EXTRATERRITORIALITY AND ENFORCEMENT (Micheál Ó Floinn, Lindsay Farmer, Julia Hörnle & David Ormerod eds., 2023) (describing U.S. strategies to expand extraterritorial reach of federal law); Rachel Brewster & Samuel W. Buell, *Law and Market: The Market for Global Anticorruption Enforcement*, 80 Law & Contemp. Prob. 193 (2017) (describing gradual expansion of U.S. authority under Foreign Corrupt Practices Act and U.S. efforts to enlist other nations in adopting binding treaties targeting public corruption such as the Convention on Combating Bribery and Foreign Public Officials in International Business Transactions art. 1.1, Dec. 17, 1997, S. Treaty Doc. No. 105-43, 37 I.L.M. 1 (1998), which “invigorated” extraterritorial enforcement efforts under the FCPA). For a list of bilateral agreements to cooperate on international criminal antitrust enforcement, see U.S. Dep’t of Justice, Antitrust Div., *Antitrust Cooperation Agreements* (updated June 2024) (listing fifteen agreement as of June 2024), <https://www.justice.gov/atr/antitrust-cooperation-agreements>.

³⁴ See, e.g., American Convention on Human Rights, Nov. 22, 1969, 1144 U.N.T.S. 123 [hereinafter American Convention].

Care Clause to faithfully execute laws constrains prosecutorial discretion at least with regard to broad policies not to enforce certain statutes.³⁵

Anti-impunity norms also appear, at least implicitly, in many state constitutions and codes, which obligate state prosecutors to ensure “adequate” or “effective and uniform” enforcement of criminal laws.³⁶ Some restrict the grounds on which prosecutors can decline to prosecute and provide that prosecutors can be removed for “misconduct” or “neglect of duty.” In various ways, state constitutions or statutes give governors or attorneys general authority to supervise local prosecutors’ enforcement practices.³⁷ Recent legislation in a few states prohibits prosecutors from adopting “categorical

³⁵ See Robert J. Delahunty & John C. Yoo, *Dream On: The Obama Administration’s Nonenforcement of Immigration Laws, the DREAM Act, and the Take Care Clause*, 91 Tex. L. Rev. 781, 784 (2013) (at least with regard to civil statutes, Take Care Clause requires the president to fully enforce “all constitutionally valid acts of Congress in all situations and cases.”); id. at 794 & 799 (arguing broad, executive branch policy preferences should not inform enforcement decisions); Zachary S. Price, *Enforcement Discretion and Executive Duty*, 67 Vand. L. Rev. 671, 679, 748-49 (2014) (prosecutorial declination should accord with statute-based policies rather than executive branch policy preferences); id. at 675 (executive has “discretion to decline enforcement in particular cases, but . . . lack[s] discretion to categorically suspend enforcement or prospectively exclude defendants from the scope of statutory prohibitions”); Zachary S. Price, *Faithful Execution in the Fifty States*, 57 Ga. L. Rev. 651, 667 (2023) (nonprosecution may “encourage or authorize illegal conduct by providing prospective assurances that those who engage in it will face no repercussions.”); id. at 694-736 (surveying state laws and concluding state constitutions prohibit at least “categorical” nonenforcement and others impose a duty of “adequate” or “effective” enforcement, and still others give state officials supervisory authority to constrain nonenforcement by local prosecutors).

³⁶ See, e.g., Cal. Const. art. V, § 13 (state attorney general’s duty to ensure “adequat[e]” enforcement of state laws); N.J. Stat. Ann. § 52:17B-103 (Attorney General’s duty to “maintain a general supervision over . . . county prosecutors with a view to obtaining effective and uniform enforcement of the criminal laws throughout the State”); see also N.J. Stat. Ann. § 52:17B-107 (2019) (authorizing attorney general to “supersede” local prosecutors and initiate prosecutions); Olsen v. Koppy, 593 N.W.2d 762, 767 (N.D. 1999) (prosecutors’ duties to enforce “must be performed regardless of public sentiment about enforcing certain laws” and “may not effectively repeal a law by failing to prosecute a class of offenses.”).

³⁷ See, e.g., Fla. Const. art. IV § 7(a) (providing that governor may “suspend from office” certain officials including local prosecutors for “neglect of duty” and “incompetence”); Fla. Gov. Exec. Order 22-176 (Aug. 4, 2022) (suspending a local prosecutor Andrew Warren for “neglect of duty” on the view that “Warren . . . declared that his office will not prosecute violations of Florida criminal laws that prohibit providers from performing certain abortions”); Timothy D. Lanzendorfer, Note, *When Local Elected Officials Behave Badly: An Analysis and Recommendation to Empower State Intervention*, 82 Ohio St. L.J. 653, 659 (2021) (surveying state laws for removing prosecutors from office).

nonenforcement” policies.³⁸ And state governments have a much-noted structural feature that help sustain anti-impunity views—election of local prosecutors, which often (though not always) tend to incentivize “tough on crime” policies and undercut the need for more formal prosecutorial enforcement obligations.³⁹ “Full enforcement” policies are a longstanding topic in criminal procedure scholarship.⁴⁰ And prominent criminal law theorists

³⁸ See, e.g., Ga. Code § 15-18-32(i)(2)(E) (2022) (creating prosecutor oversight commission with the power to remove DAs for adopting a “stated policy, written or otherwise, which demonstrates that the district attorney . . . categorically refuses to prosecute any offense or offenses of which he or she is required by law to prosecute”); Tex. Local Gov. Code § 87.011(3) (2023) (defining “official misconduct” to include “a prosecuting attorney’s adoption or enforcement of a policy of refusing to prosecute a class or type of criminal offense under state law”); id. §§ 87.015 & 87.018 (providing for removal from office on basis of such misconduct); id. § 87.0135 (“A prosecuting attorney may not adopt or enforce a policy under which the prosecuting attorney refuses to prosecute a class or type of criminal offense . . .”); see also Jorge Comacho, Nicholas Goldrosen, Rick Su & Marissa Roy, *PREEMPTING PROGRESS: STATES TAKE AIM AT PROSECUTORS* (January 2023) (describing recent examples of similar state legislation restricting prosecutorial discretion); Akela Lacy, *17 States Have Now Tried to Pass Bills that Strip Power from Reform-Minded Prosecutors*, Intercept (Mar. 3, 2023) (same).

³⁹ For a classic account of U.S. tough-on-crime politics, see Stuntz, *supra* note 1, at 509; see, e.g., For examples of political officials condemning lenient prosecution policies, see Jeff Amy, *Georgia enacts law letting panel punish, oust prosecutors*, AP News, May 5, 2023 (quoting Georgia governor, “we will not forfeit public safety for prosecutors to let criminals off the hook.”); Michelle L. Price & Jesse Bedayn, *GOP steps up crime message in midterm’s final stretch*, AP News, Oct. 7, 2022; William P. Barr, Att’y Gen., U.S. Dep’t of Just., *Remarks at the Grand Lodge Fraternal Order of Police’s 64th National Biennial Conference*, (Aug. 12, 2019), (arguing that consequence of prosecutors “announcing their refusal to enforce broad swathes of the criminal law” will be “[m]ore crime; more victims”). For an example prosecution lobbying, see Steven H. Cook, *Re: Sentencing Reform Act of 2015, H.R. 3713* (Sept. 8, 2016) (letter on behalf of National Association of Assistant United States Attorneys to House of Representatives arguing that sentencing reform bill would “undermine our ability to disrupt and dismantle violent gangs” and condemning policy reform advocacy by “anti-law enforcement groups”). Cf. Lenore Anderson, *IN THEIR NAMES: THE UNTOLD STORY OF VICTIMS’ RIGHTS, MASS INCARCERATION, AND THE FUTURE OF PUBLIC SAFETY* (2022) (arguing victims’ rights movement contributed to harsh sentencing policies that ill-served victims’ needs).

⁴⁰ See Justin Murray, *Prosecutorial Reform and the Myth of Individualized Enforcement*, 102 Wash. U. L. Rev. 1435, 1439 (2025) (describing “the myth of full enforcement” as “a dominant conception of the prosecutorial (and police) role for much of the twentieth century”); Sanford H. Kadish, *Legal Norm and Discretion in the Police and Sentencing Processes*, 75 Harv. L. Rev. 904, 915, 930 (1962) (describing and criticizing the ambition of full enforcement); Thurman Arnold, *THE SYMBOLS OF GOVERNMENT* 151–53 (1937) (describing the core features of full enforcement policies); see also Aya Gruber, *The Feminist War on Crime*, 92 Iowa L. Rev. 741, 757 (2007) (“domestic violence reform became more prosecutorial Many feminists embraced mandatory arrest and prosecution policies ... [and] asserted that such policies served to correct the inevitable inequities produced by a discretionary system”).

have long argued that prosecutors, and the state generally, have a duty to enforce the law to the fullest extent practicable.⁴¹

These policies and values in U.S. law are found in international law as well, where anti-impunity norms are more formalized. The Preamble to the Rome Statute creating the International Criminal Court expresses the commitment “to put an end to impunity for the perpetrators of” serious crimes of international concern, notably genocide, war crimes, and crimes against humanity.⁴² Other international courts have interpreted both the European and American Conventions on Human Rights⁴³ to limit states’ authority to provide impunity not only for grave human rights offenses but more broadly for crimes such as homicide, assault, domestic violence, and human trafficking. The Inter-American Court of Human Rights (IACtHR), for example, concluded that “amnesties and other analogous measures contribute to impunity and constitute an obstacle to the right to the truth in that they block an investigation of the facts on the merits” and are therefore incompatible with the American Convention.⁴⁴

⁴¹ Specifically, retributivists argue for the duty to punish all wrongdoers even if consequentialist considerations weigh against it. For an overview, see Darryl K. Brown, *Criminal Law Theory and Criminal Justice Practice*, 49 Am. Crim. L. Rev. 73, 89-92 (2012) (discussing retributive theorists Michael Moore, Jean Hampton, and Jeffrie Murphy).

⁴² U.N., Rome [Statute](#) of the International Criminal Court, preamble; see id. (State parties “[a]ffirm[] that the most serious crimes ... must not go unpunished and that their effective prosecution must be ensured” and are “[d]etermined to put an end to impunity for the perpetrators of these crimes and thus to contribute to the prevention of such crimes”).

⁴³ American Convention, *supra* note 34; European Convention on Human Rights, Art. 41, Nov. 4, 1950, 213 UNTS 221 [hereinafter ECHR].

⁴⁴ *Gomes Lund v. Brazil* (IACtHR 2010) para 151 (citing Office of the UN High Commissioner for Human Rights, Rep., *Right to the Truth*, para. 20 (U.N. Doc. A/HRC/5/7, June 7, 2007), which disapproved amnesty grants because they “not only promote impunity: they also pose a major obstacle to efforts to uphold the right to the truth by inhibiting the conduct of full inquiries.”); id. at paras 134-136 (invalidating Brazilian amnesty law, concluding that “non-compatibility with the Convention includes amnesties of serious human rights violations and is not limited to ... ‘self-amnesties,’” meaning those governments grant to its own officials). See also *Gelman v. Uruguay* (IACtHR 2011) para 199 (“amnesties ... contribute to impunity”); *Almonacid-Arellano v. Chile* (IACtHR 2006) para 120 (holding Chile’s amnesty law violated the Convention because, “it was issued by the military regime to avoid judicial prosecution of its own crimes”); *Barrios Altos v. Peru*, Inter-Am Ct. H.R. (ser. C) No. 75 (2001) para 43 (invalidating Peruvian “self-amnesty” law, because it “perpetuate[s] impunity” and is “manifestly incompatible with the aims and spirit of the Convention”).

The European Court of Human Rights (ECtHR) has taken a more moderate approach.⁴⁵ It has concluded that—except for grave human rights crimes such as torture⁴⁶—amnesties may be compatible with the Convention provided “a balance is maintained between the legitimate interests of the State and the interests of individual members of the public.”⁴⁷ But the Court has also endorsed the “growing tendency in international law is to see ... amnesties as unacceptable because they are incompatible with the unanimously recognised obligation of States to prosecute and punish grave breaches of fundamental human rights,”⁴⁸ especially if granted by a government to its own officials: “when an agent of the State is accused of crimes that violate [ECHR] Article 3,

⁴⁵ For an insightful analysis of the ECtHR case law regarding amnesties, see Miles Jackson, *Amnesties in Strasbourg*, 38 Oxford J. Legal Studies 451 (2018); id. at 468 (criticizing ECtHR decisions disfavoring amnesties and arguing that “[t]he exclusion of conflicting interests ... is the most significant consequence of how the Court has articulated the duty to prosecute.”) Like the American Convention, the European Convention gives special scrutiny to impunity granted to government officials. See *McShane v UK* (2002) 35 EHRR 23, para 96 (Investigations of police officers must be “effective in the sense that it is capable of leading to a determination of whether the force used in such cases was or was not justified in the circumstances;” this requires “the persons responsible for and carrying out the investigation [must] be independent from those implicated in the events”); *Margus v Croatia* [2016] 62 EHRR 17 (Grand Chamber), para 125 (Convention articles 2 & 3 “require ... some form of effective official investigation when individuals have been killed as a result of the use of force or ill-treated ... [in order] to ensure the accountability of the perpetrators.”)

⁴⁶ *Margus*, 62 EHRR 17 (Grand Chamber) para 126 (“amnesty was generally incompatible with the duty incumbent on States to investigate acts such as torture and that the obligation to prosecute criminals should not therefore be undermined by granting impunity to the perpetrator in the form of an amnesty”); see also *Ould Dah v. France*, 56 EHRR SE17 (2013) para 48 (“amnesty is generally incompatible with the duty incumbent on the state to investigate”).

⁴⁷ *Tarbuk v. Croatia* [2012], citing *Dujardin and Others v France* (Admissibility) ECtHR (1991) 72 DR 236, para 244 (same). See also *Pulfer v Albania* App No. 31959/13 (ECtHR, 20 Nov. 2018) para. 87: “the Court has held that in cases concerning torture or ill-treatment, amnesties and pardons should not be tolerated [citations omitted]. In that sense the Court concludes that although the legal framework in place may have had a sufficiently deterrent effect, the latter was erased by the subsequent amnesty law.”)

⁴⁸ *Margus*, 62 EHRR 17 (Grand Chamber), para 139; see also Juan E. Méndez, *Foreword*, in AMNESTY IN THE AGE OF HUMAN RIGHTS ACCOUNTABILITY: COMPARATIVE AND INTERNATIONAL PERSPECTIVES xxiii (Francesca Lessa & Leigh A. Payne, eds., 2012) (describing a “rapid evolution” in international law to no longer condone amnesty for serious human rights offenses); see also Karen Engle, *A Genealogy of the Criminal Turn in Human Rights*, in ANTI-IMPUNITY AND THE HUMAN RIGHTS AGENDA 7, 25 (Karen Engle, Zinaida Miller & D. M. Davis eds., 2016) (describing Méndez’s view as one “commonly found in the writings of human rights scholars, international institutions, and human rights courts”).

... the granting of an amnesty or pardon should not be permissible.”⁴⁹ And ECHR limits on impunity extend to prosecutorial declination and failures to investigate. The ECtHR has concluded that the Convention obliges member states to criminalize interpersonal harms and to maintain criminal legal systems that adequately investigate, prosecute, and punish wrongdoing that violates Convention rights.⁵⁰

Prominent civil society groups and legal scholars have endorsed these anti-impunity developments.⁵¹ But there is a substantial critical literature as

⁴⁹ *Okkali v Turkey* [2010] 50 EHRR 43, ¶76; see also *Ali and Ayşe Duran v. Turkey*, App no 42942/02 (ECtHR, 8 April 2008) para 69 (“[W]here a State agent has been charged with crimes involving ill-treatment, it is of the utmost importance that ... measures such as the granting of an amnesty or pardon should not be permissible [because it is tantamount to] ... virtual impunity”).

⁵⁰ For discussions of this case law, see, e.g., Jackson, *supra* note 45, at 458; Vladislava Stoyanova, *Human Trafficking and Slavery Reconsidered: Conceptual Limits and States’ Positive Obligations in European Law* (2017); Laurens Lavrysen, *Human Rights in a Positive State* (2016); Andrew Ashworth, *Positive Obligations in Criminal Law* (2013); Anja Seibert-Fohr, *Prosecuting Serious Human Rights Violations* 111-52 (2009). See, e.g., *Beganović v Croatia*, App no 46423/06 (ECtHR, 25 June 2009), para 71 (ECHR article 3 requires states to “put in place effective criminal-law provisions to deter the commission of offences against personal integrity, backed up by law-enforcement machinery for the prevention, suppression and punishment of breaches of such provisions ... [even] by private individuals....”); *Volodina v Russia*, App no 41261/17 (ECtHR, 9 July 2019) para 61 (the lack of specific legislation for domestic violence “contributes to impunity for crimes committed in the private sphere”) (quoting Special Rapporteur findings); *id.* at paras 78–86 (discussing earlier case law to same effect); see also *Kontrova v Slovakia*, App no 7510/04 (ECtHR 31 May 2007) (finding breach of article 2 in police failure to respond to domestic violence complaint related to deaths of children); *Siliadin v France* App No.73316/01 (ECtHR 26 July 2005) para. 112 (ECHR article 4 requires “penalisation and effective prosecution” of slavery and forced labor); *Kiliç v Turkey* App No.22492/93 (ECtHR, 28 March 2000) para. 62 (article 2 right to life requires states to enact “effective criminal law provisions”).

⁵¹ See, e.g., Amnesty International, *Policy Statement on Impunity*, in 1 *TRANSITIONAL JUSTICE: HOW EMERGING DEMOCRACIES RECKON WITH FORMER REGIMES* 219 (Neil J. Kritz ed. 1995):

Amnesty International believes that the phenomenon of impunity is one of the main contributing factors to [ongoing gross human rights violations].... Impunity ... has serious implications for the proper administration of justice ... International standards clearly require states to undertake proper investigations into human rights violations and to ensure that those responsible are brought to justice.

Transparency Int’l, *Congress Passes Landmark Law To Criminally Prosecute Corrupt Foreign Leaders* (Dec. 14, 2023) (praising U.S. Foreign Extortion Prevention Act as a response to “kleptocracies where corrupt officials routinely steal resources from their citizens with impunity”). For an influential scholarly account, see Kathryn Sikkink, *THE JUSTICE CASCADE: HOW HUMAN RIGHTS PROSECUTIONS ARE CHANGING WORLD POLITICS* 5 (2011); *id.* at 167 (concluding, based on prosecutions starting in the 1990s primarily in Latin America, that countries that prosecuted atrocity crimes were less likely to see a recurrence of such crimes,

well.⁵² Skeptics question the priority for criminal law enforcement on several grounds.⁵³ The most salient is that justifications for impunity vindicate other important state interests that can outweigh holding the guilty to account even for grave wrongdoing. Occasionally, such judgments can be made categorically with little controversy, as with full criminal immunity granted to diplomats, or in dismissals with prejudice as a remedy for constitutional violations.⁵⁴ More often, they are assigned to the discretion of political officials because require

as were neighboring countries). see also Gary Jonathan Bass, *STAY THE HAND OF VENGEANCE: THE POLITICS OF WAR CRIMES TRIBUNALS* 28-36, 328-29 (2000) (interpreting the history of war crimes tribunals as a “reaction to continued impunity” and vengeance by liberal states and an effort to institutionalize accountability and legal justice).

⁵² See COERCIVE HUMAN RIGHTS – POSITIVE DUTIES TO MOBILISE THE CRIMINAL LAW UNDER THE EUROPEAN CONVENTION OF HUMAN RIGHTS (Laurens Lavrysen & Natasa Mavronicola eds., 2020); Natasa Mavronicola, *The Case Against Human Rights Penalty*, 44 Oxford J. Legal Stud. 1, 6-10 (2024) (summarizing and citing judicial and scholarly sources); Jackson, *supra* note 45, at 468 (suggesting putative obligations to prosecute “informed by a normative ideal of anti-impunity, denies the need for argumentative justification where such justification is sorely needed”); *id.* at 467-68 (arguing a duty to prosecute gives criminal law “unjustified weight” and excludes important conflicting interests). Liora Lazarus, *Positive Obligations and Criminal Justice: Duties to Protect or Coerce?*, in *PRINCIPLED APPROACHES TO CRIMINAL LAW AND CRIMINAL JUSTICE: ESSAYS IN HONOUR OF PROFESSOR ANDREW ASHWORTH* 135, 149 (Julian Roberts & Lucia Zedner, eds., 2012) (warning of “the extra-legal implications of broad rhetorical assertions of coercive duties inside the courts, and the concomitant risk of coercive overreach” in policy and practice).

⁵³ One criticism is skeptical of prioritizing criminal law deterrence over other prevention strategies. See, e.g., Mavronicola, *supra* note 52, at 19 (requiring criminal law remedies to protect domestic violence victims “serves in fact to sideline practical and effective measures of protection”; UN Torture Convention “implicitly treats as peripheral other mechanisms by which torture can be effectively addressed and prevented”); *id.* at 27 (focus on penalty diverts from other ways “redress and accountability are understood and concretized.”). Some find scant empirical support, in many contexts, for criminal law’s deterrent effect and contribution to prevention. See Samuel Moyn, *Anti-Impunity as Deflection of Argument*, in K. Engle, Z. Miller & D.M. Davis, eds., *supra* note 48, at 84 (concluding “anti-impunity made extremely modest differences in global human rights outcomes”); *id.* at 74 (“there is to my knowledge no evidence suggesting that accountability leads to the outcomes of strengthened democracy” in transitional justice settings). A separate criticism is that criminal law “unduly narrows the character and scope of the investigation required and accountability produced.” Mavronicola, *supra* note 52, at 21 (internal quotation marks omitted); see also Engle, *supra* note 48, at 16 (reliance on criminal law can “reinforce an individualized and decontextualized understanding of ... harms”).

⁵⁴ See, e.g., *Barker v. Wingo*, 407 U.S. 514 (1972) (interpreting Speedy Trial Clause); *United States v. Lovasco*, 431 U.S. 783 (1977) (defining due process limits on pre-indictment delay); *United States v. Chapman*, 524 F.3d 1073, 1083-85 (9th Cir. 2008) (affirming dismissal with prejudice based on prosecutors’ “flagrant” prosecutorial misconduct” regarding constitutional disclosure obligations).

context-specific judgments between incommensurable interests, judgments that often elude consensus.⁵⁵ As the next Part describes, most dispensations of impunity lie with the executive, but courts and legislatures on occasion regulate that discretion or usurp it altogether.

III. IMPUNITY JUSTIFICATIONS AND MECHANISMS

After briefly describing legislative interventions in the landscape of impunity, this Part focuses on the executive branch's long record of exercising its formidable impunity powers, clemency and prosecutorial discretion. Legislatures' roles are primarily to authorize or restrict executive impunity powers exercised through prosecutorial discretion. Reasons for expanding and constraining those powers confirm the range of public interests that justify not prosecuting the guilty. Reasons that the executive grants impunity are more significant. The most important use of those powers, evident in a long tradition of presidential pardons, is to respond to political circumstances in which criminal law loses its capacity to affirm shared understandings of wrongdoing—and, in effect, the rule of law—and instead contributes to social division and political polarization. The final sections then leverage insights from these policies to reexamine the pardons for January 6 Capitol riot participants; the Biden administration's decision to prosecute then-former President Trump; and the Supreme Court's creation of presidential immunity.

To preview: I suggest there were good arguments for dispensing impunity in all three scenarios, which accord with a long tradition of granting impunity to wrongdoers in times of political polarization. However, the wrong president granted the January 6 pardons. The Biden administration overlooked better alternatives for accountability than prosecuting Trump. And the Court in

⁵⁵ See generally Moyn, *supra* note 53, at 87 (prosecution, at least of politically salient events, requires “engag[ing] in discourse about what makes specific aims valuable in a given political context The beginning of wisdom about the accountability norm ... is to acknowledge that it is a political enterprise ...[that] intersects with other extant political agendas”).

Trump v. United States imprudently foreclosed roles for the political branches who are better positioned to make politically fraught judgments about the merits of impunity in response to social dissensus.

A. Legislative policies on impunity

Legislatures rarely grant impunity directly to individuals or groups of offenders. Some state constitutions give legislatures exclusive power to grant individual pardons at least for treason offenses,⁵⁶ and a few states have enacted amnesty legislation covering other crimes for specific groups or arising from specific events.⁵⁷ Congress, however, has never granted criminal amnesty through legislation.⁵⁸ But legislatures control grants of impunity in other

⁵⁶ See Fla. Const. art. IV § 8 (reserving to the legislature the power to grant pardons for treason); N.Y. Const. art. IV § 4 (same).

⁵⁷ See *State v. Eby*, 170 Mo. 497, 71 S.W. 52 (1902) (affirming general amnesty in Beer Compromise Act); *State v. Applewhite*, 75 N.C. 229 (1876) (holding defendant convicted of an 1870 murder was covered by Amnesty Acts of 1872 and 1874, which granted amnesty to “the band of outlaws known as the ‘Lowery band.’”); *State v. Keith*, 63 N.C. 140, 142-43 (1868) (murder defendant covered by Amnesty Act of 1866, which applied to conduct committed by those acting on behalf of Confederate government); *State v. Blalock*, 61 N.C. 242 (1866) (applying same amnesty act).

There is little evidence that Congress and state legislatures have used their undisputed power of statutory repeal to achieve equivalent, if less targeted, results. By repealing a criminal statute, a legislature could deprive the executive of a basis on which to initiate prosecutions even for conduct committed when the statute was still in effect. See Todd David Peterson, *Congressional Power Over Pardon and Amnesty: Legislative Authority in the Shadow of Presidential Prerogative*, 38 Wake Forest L. Rev. 1225, 1276 (2003). Repeal could not be targeted to offenders in specific circumstances or subject to specific conditions, nor would it impede prosecutions already underway at the time of repeal.

⁵⁸ It seems unsettled whether Congress can grant amnesty through legislation or, conversely, whether the president’s pardon power implicitly precludes that authority. Compare *United States v. Klein*, 80 U.S. 128, 147-48 (1872) (“To the executive alone is intrusted the power of pardon,” and the “legislature cannot change the effect of such a pardon”) and *Brown v. Walker*, 161 U. S. 591, 601 (1896) (reasoning, in the context of affirming Congress’ power to grant immunity to a witness in order to compel testimony, that “[a]lthough the Constitution vests in the President ‘power to grant reprieves and pardons for offences against the United States, except in cases of impeachment,’ this power has never been held to take from Congress the power to pass acts of general Amnesty”). See generally Peterson, *supra* note 57, at 1268-79 (describing congressional power to grant amnesty as unsettled, noting scholarly views differ, and arguing Congress should not possess such power); but see Louis Lusky, *Congressional Amnesty for War Resisters: Policy Considerations and Constitutional Problems*, 25 Vand. L. Rev. 525, 539-40 (1972) (suggesting Supreme Court precedent provides some basis for amnesty legislation). During the Civil War, Congress purported to authorize the president to grant pardons or amnesty to rebels, see Act of July 17, 1862, 12 Stat. 592, although the Pardon

ways. Holding aside Congress' recognition of diplomatic immunity,⁵⁹ they do so primarily by authorizing, defining parameters for, or restricting prosecutors' charging and declination authority.

Statutes that authorize witness immunity are examples of legislation that expand *prosecutors'* power to grant a stronger form of impunity than merely a discretionary (and reversible) decision not to charge a suspect.⁶⁰ Provisions such as 18 U.S.C. § 6003 give prosecutors complete decision to grant

Clause gives the president the power to pardon regardless of such authorization. On occasion, Congress has debated enacting amnesty legislation. See John C. Etridge, David Lockwood & Donald J. Alderson, *Amnesty: A Brief Historical Overview* 23-24 (1974), (Cong. Research Serv. [74-179F](#)) (recounting debates over amnesty legislation in the 1970s); Peterson, *supra* note 57, at 1269 (same). Congress clearly has power to grant amnesty in the form of relief from civil law penalties or consequences such as deportation. See, e.g., Immigration Reform and Control Act of 1986, Pub. L. 99-603, 100 Stat. 3445, § 201 (Title II providing for "legalization of status" for undocumented aliens); Lib. of Cong., *Research Guide: Immigration Reform and Control Act of 1986* (noting the act is also known as "Reagan Amnesty"), at <https://guides.loc.gov/latinx-civil-rights/irca>.

National legislatures elsewhere can dispense amnesty by legislation. See Etridge, et al., *supra*, at 8 ("In many countries the power to grant amnesty rests with the legislature rather than the executive."); *id.* at 5 (describing amnesty laws adopted in European countries and Japan after World War II); Helena Alviar García & Karen Engle, *The Distributive Politics of Impunity and Anti-Impunity: Lessons from Four Decades of Colombian Peace Negotiations*, in K. Engle, Z. Miller & D.M. Davis, eds., *supra* note 48, at 216, 221 & 226-27 (describing Colombian Congress' authority to enact amnesty law under successive constitutions in 1980s and 1990s).

⁵⁹ Diplomatic Relations Act, 22 U.S.C. §§ 254a-254d (2024); *id.* at 254d ("Any action or proceeding brought against an individual who is entitled to immunity with respect to such action or proceeding under the Vienna Convention on Diplomatic Relations ... or under any other laws extending diplomatic privileges and immunities shall be dismissed."); *Tabion v. Mufti*, 73 F.3d 535, 537 (4th Cir. 1996) (recognizing diplomatic immunity "from criminal prosecution and protection from most civil and administrative actions"). As of June 2025, 193 states are parties to the VCDR, *supra* note 9. See United Nations Treaty Collection at https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=III-3&chapter=3&clang=en. See generally Yuliya Zabyelina, BETWEEN IMMUNITY AND IMPUNITY 23-61 (2023) (discussing all forms of official immunity).

⁶⁰ See 18 U.S.C. §§ 6002-6003. For an overview of state immunity statutes, see David B. Sweet, *Propriety, under state constitutional provisions, of granting use or transactional immunity for compelled incriminating testimony—post-Kastigar cases*, 29 A.L.R.5th 1 (2024 update); *Kastigar v. United States*, 406 U.S. 441, 447 (1972) (noting "every State in the Union ... has one or more such [immunity] statutes"); *id.* at 460-62 (confirming Section 6002 provides use immunity, not transactional immunity). Some state constitutions require transactional immunity to overcome the privilege against self-incrimination. See, e.g., in *State v. Gonzalez*, 853 P.2d 526 (Alaska 1993); *Carney v. Springfield*, 403 Mass. 604, 532 N.E.2d 631 (Mass. 1988); *State v. Soriano*, 298 Or. 392, 693 P.2d 26 (1984); *State v. Miyasaki*, 614 P.2d 915 (Haw. 1980); Sweet, *supra*, at §§ 4-5 (discussing state cases that require transactional immunity).

(or impose) immunity. Like other forms of immunity, the rationale is primarily instrumental;⁶¹ immunity is a means for the government to overcome the privilege against self-incrimination and compel information that “may be necessary to the public interest.”⁶² Yet its structure also compels limited form of accountability somewhat akin to truth commissions or a conditional pardons.⁶³ While “[t]he essence of immunity ‘is its possessor’s entitlement not to have to answer for his conduct’ in court,”⁶⁴ recipients must fully disclose their wrongdoing and other relevant information.⁶⁵ They are in that sense held to account at least to public officials, if not in a publicly available record.

Aside from immunity statutes, legislatures tend to regulate prosecutors’ charging discretion with a heavier hand in service of two overlapping aims. One is for the legislature itself to strike the balance directly between the benefits and costs of impunity. The other is to regulate the executive’s power to do so. Interventions run in both directions—for greater and lesser impunity, depending on the context.

⁶¹ See *Forrester v. White* 484 U.S. 219, 224 (1988) (“Running through our cases, with fair consistency, is a ‘functional’ approach to immunity questions”); Y. Zabyelina, *supra* note 59, at 32-34 (summarizing theories for official immunity, arguing “functional necessity” is the most persuasive and widely accepted); cf. Jeffries, *supra* note 25, at 221 (“absolute prosecutorial immunity should rest—as all immunities should rest—on a functional justification”). Diplomatic immunity is also explicitly instrumental. Its purpose “is not to benefit individuals but to ensure the efficient performance of functions of diplomatic missions as representing States” and facilitate “the development of friendly relations among nations” to maintain “international peace and security.” VCDR, *supra* note 9 (Preamble).

⁶² 18 U.S.C. § 6003(b)(1); see *Kastigar*, 406 U.S. at 445-46 (“Immunity statutes ... seek a rational accommodation between the imperatives of the [Self-Incrimination] privilege and the legitimate demands of government to compel citizens to testify. The ... statutes reflect[] the importance of testimony, and the fact that many offenses are of such a character that the only persons capable of giving useful testimony are those implicated in the crime.”); *id.* at 447 (the Court and commentators “have characterized immunity statutes as essential to the effective enforcement of various criminal statutes.”).

⁶³ On conditional pardons, see *infra* Part III.B.2a and b.

⁶⁴ *Trump v. United States*, 603 U.S. 593, 630 (2024) (quoting *Mitchell v. Forsyth*, 472 U. S. 511, 525 (1985)).

⁶⁵ For a comparison to another mechanism that provides impunity from prosecution in exchange for full, self-incriminating disclosures under certain conditions, see U.S. Dep’t of Justice, Antitrust Div., *Leniency Program*, at <https://www.justice.gov/atr/leniency-program>.

Legislatures generally affirm the common law tradition of broad prosecutorial discretion.⁶⁶ But there are notable exceptions. Sometimes legislatures limit prosecutors' discretion to grant impunity through decisions not to charge suspects. As noted above, some recent state statutes restrict prosecutorial discretion to dispense impunity by prohibiting "categorical" policies of declination.⁶⁷ In other states, legislatures have empowered judges to review and reverse prosecutors' decisions not to prosecute after victims file criminal complaints; judges must confirm there are good reasons for declination.⁶⁸ Both strategies seek to prevent prosecutors from granting impunity without justification.

On the other hand, state legislatures facilitate or mandate impunity by restricting prosecutorial charging power in specific contexts. For example, state laws prohibit charges against human trafficking victims; in effect, they *impose* categorical nonprosecution policies.⁶⁹ U.S. treaty obligations require

⁶⁶ See, e.g., Wash. Rev. Code § 13.40.077 (2022) (authorizing prosecutors not to charge in a variety of circumstances despite sufficient evidence to prove guilt, including when "prosecution would serve no public purpose").

⁶⁷ See *supra* note 38 (citing Texas and Georgia statutes).

⁶⁸ See, e.g., Colo. Rev. Stat. § 16-5-209 (2017) ("The judge ..., upon affidavit filed with the judge alleging the commission of a crime and the unjustified refusal of the prosecuting attorney to prosecute any person for the crime, may require the prosecuting attorney to appear before the judge and explain the refusal. If . . . the judge finds that the refusal of the prosecuting attorney to prosecute was arbitrary or capricious and without reasonable excuse, the judge may order the prosecuting attorney to file an information and prosecute the case or may appoint a special prosecutor to do so."); Mich. Comp. Laws § 767.41 (2017) ("[I]f, upon examination, the court is not satisfied with the [prosecution's] statement, the prosecuting attorney shall be directed by the court to file the proper information and bring the case to trial."); Neb. Rev. Stat. § 29-1606 (2017) (same); Pa. R. Crim. P. 506(B)(2) (requiring prosecutors to give reasons for declining to prosecute a criminal complaint filed by a private party, and permitting "the affiant [to] petition the court of common pleas for review of the decision"); *In re Hickson*, 2000 Pa. Super. 402, ¶¶ 12–19 (describing victim standing to seek judicial review of decisions not to prosecute based on private complaints); see also *State ex rel. Clyde v. Lauder*, 90 N.W. 564, 569 (N.D. 1902) ("[T]he more modern rule, ... in this state, is the reverse of that at common law. In this state, while the prosecutor may file with the court his reasons for not filing an information . . . it is the province of the court to determine the ultimate question whether the case shall be prosecuted or dismissed."); cf. *Olsen v. Koppy*, 593 N.W.2d 762, 765–67 (N.D. 1999) (citing *Lauder*, 90 N.W. 564, with approval).

⁶⁹ See, e.g., Alaska Stat. § 11.66.100(c) (2022) ("A person may not be prosecuted [for prostitution] ... if the (1) person witnessed or was a victim of, and reported to law enforcement" certain crimes including assault and sex trafficking); Neb. Rev. Stat. § 28-1701(1) (2022) ("A

federal prosecutors to do the same.⁷⁰ And at the federal level, Congress has leveraged its appropriations power to restrict prosecutors' discretion, or capacity, to press charges. Congress intentionally underfunds enforcement efforts in some domains in order to limit the executive's capacity to enforce federal law—a policy that expands impunity for wrongdoers.⁷¹ With regard to marijuana laws, Congress has been more direct: appropriations legislation has included provisions that prohibit the Justice Department from enforcing federal marijuana offenses in states that have legalized marijuana.⁷² The best interpretation of this policy is that dictates federal law impunity in service of

person shall not be arrested or prosecuted for an eligible alcohol or drug offense if such person witnessed or was the victim of a sexual assault [including sex trafficking] and such person" reported the offense); Wyo. Stat. § 6-2-708(a) (2022) ("A victim of human trafficking is not criminally liable for any commercial sex act or other criminal acts committed as a direct result of, or incident to, being a victim of human trafficking").

⁷⁰ Off. to Monitor & Combat Trafficking in Persons, U.S. Dep't of State, PROTECTING VICTIMS OF TRAFFICKING: THE NON-PUNISHMENT PRINCIPLE 1 (2023) ("Victims of severe forms of trafficking should not be inappropriately incarcerated, fined, or otherwise penalized solely for unlawful acts committed as a direct result of being trafficked"). That policy implements U.S. obligations under the Protocol to Prevent, Suppress, and Punish Trafficking in Persons, Especially Women and Children, supplementing the United Nations Convention against Transnational Crime, 2237 U.N.T.S. 319 (entered into force Dec. 25, 2003); United Nations Convention Against Transnational Organized Crime, 2225 U.N.T.S. 209 (entered into force Sept. 29, 2003). See also U.N. Conference of the Parties to the United Nations Convention on Transnational Organized Crime, Working Group on Trafficking in Persons, *Guidance on the Issue of Appropriate Criminal Justice Responses to Victims Who Have Been Compelled to Commit Offences as a Result of Their Being Trafficked*, ¶ 4, U.N. Doc. CTOC/COP/WG.4/2022/2 (Apr. 7, 2022) (interpreting Protocol article 2(b) to encompass the non-punishment principle); Siobhán Mullally (Special Rapporteur on Trafficking in Persons, Especially Women and Children), *Implementation of the Non-Punishment Principle*, ¶ 52, U.N. Doc. A/HRC/47/34 (May 17, 2021) ("non-punishment should be understood as a compulsory tool that is required to be applied by all domestic authorities and investigative, prosecutorial and judicial authorities").

⁷¹ See Daniel C. Richman, *Federal Criminal Law, Congressional Delegation, and Enforcement Discretion*, 46 UCLA L. REV. 757, 793–99 (1999) (discussing Congress' strategy of limiting agency budgets to constrain enforcement by some agencies such as the Internal Revenue Service; Rachael Bade, *Republicans Seek to Cripple IRS: The GOP's Moves Will Gut the Tax Agency, Advocates Warn*, [POLITICO](#) (Dec. 11, 2014) (quoting senator's aim to use "[t]he power of the purse" to "push back on the regulatory overreach" of the IRS and EPA).

⁷² See Cong. Res. Serv., *Funding Limits on Federal Prosecutions of State-Legal Medical Marijuana* 1 (updated May 14, 2024) (noting "Congress has enacted appropriations legislation prohibiting the Department of Justice (DOJ) from expending appropriated funds to prevent states from implementing their own medical marijuana laws. Federal courts have interpreted the appropriations rider to prohibit DOJ from bringing criminal drug prosecutions against certain persons and entities involved in the state-legal medical marijuana industry").

state policy experimentation; it prioritizes a policy goal that conflicts with federal criminal law, which still prohibits such conduct.

Another set of state and federal laws are easy to overlook as grants of impunity: statutes of limitations. Nearly every U.S. jurisdiction prohibits the executive from prosecuting most offenses after a specified time period.⁷³ Those statutes have familiar rationales—discouraging prosecution delays; concerns about evidence dissipation and its effect on accurate adjudication; offenders’ interests in repose.⁷⁴ Nonetheless, such statutes grant impunity to culpable wrongdoers in order to prioritize other interests over punishment of the guilty. They are also an example of legislatures usurping prosecutors’ discretion to make those judgments.

B. Impunity by executive discretion

1. Prosecutorial discretion

⁷³ See, e.g., 18 U.S.C. § 3282 (2024) (defining five-year statute of limitations for non-capital crimes unless otherwise specified). In the states, limitations periods are usually one or two years for misdemeanors and increases to five or ten years for most felonies; murder and other grave offenses often have no time bar. See Olivia Wathne, *Time Limits for Charges: State Criminal Statutes of Limitations*, FindLaw ([updated](#) Aug. 2023) (listing statutes of limitations for most states). Offense-based distinctions and exceptions to time-limit bars reveal the interest-balancing at stake. Victim interests motivate extensions or repeal of time limits for serious crimes. James DiFonzo, *In Praise of Statutes of Limitations in Sex Offense Cases*, 41 Hous. L. Rev. 1205 (2004) (describing efforts by prosecutors, victims’ rights advocates, and others to extend or repeal time limitations for sex offenses). Some statutes, for example, start the statutory clock, for example, when a juvenile victim turns eighteen, when a victim first reports an assault to authorities, when a harm is discovered, or when a perpetrator can be identified by DNA evidence. For criticisms of statutes of limitations that apply to sexual assault crimes, see Jillian M. Purdue & Fredrick E. Vars, *Time to Heal: Trauma’s Impact on Rape & Sexual Assault Statutes of Limitations*, 11 Tex. A&M L. Rev. 125 (2023) (urging reform or abolition of such statutes). For an overview of recent reforms in light of DNA evidence, see Aaron Weisman, *Validity, Construction, and Application of State Statutes Eliminating, Extending, or Tolling Statute of Limitations for Sexual Offense When DNA Can Provide Identity of Alleged Perpetrator*, 16 A.L.R.7th 7 (updated June 2024). For a database tracking state laws and legislative reform of statutes of limitations related to child abuse, see Child USA website at <https://childusa.org/sol/> (also noting organization’s “goal is to eliminate civil and criminal [statutes of limitations] for child sex abuse crimes”).

⁷⁴ See *United States v. Marion*, 404 U.S. 307, 322 (1971) (describing standard interests served by statutes of limitations); *Toussie v. United States*, 397 U.S. 112, 114–15 (1970) (same); *United States v. Ewell*, 383 U.S. 116, 122 (1966) (“statute of limitations . . . is . . . the primary guarantee against bringing overly stale criminal charges.”); *United States v. Scharton*, 285 U.S. 518, 522 (1932) (statutes of limitations “to be liberally interpreted in favor of repose”).

Notwithstanding legislative interventions, executive branch officials retain the most significant and unfettered powers of impunity: prosecutorial charging discretion and executive clemency. Both of these powers are sometimes employed in ways that do not amount of grants of impunity. That is clearly true when prosecutors decline to charge because of insufficient evidence, meaning either no crime was committed or the government cannot prove guilt. And some pardons are granted posthumously or after an offender has served a long sentence.⁷⁵ The focus here is on the use of these powers to prevent the prosecution of culpable wrongdoers whom the state could convict and punish, and the reasons that supersede the principle of holding offenders to account.

Some declination policies reflect considered policy choices. Federal antitrust enforcement has also long offered a formal “Leniency Policy” that provides criminal impunity (subject to conditions) for individuals and firms that self-report criminal antitrust violations.⁷⁶ And federal prosecutors often employ non-prosecution agreements (NPAs) to resolve wrongdoing by corporate entities,⁷⁷ pursuant to which firms will not face criminal charges if they fulfill a set of requirements that commonly include disclosing evidence of wrongdoing, paying compensation or civil penalties, and reforming internal corporate practices.⁷⁸

⁷⁵ See e.g., Katie Rogers, *Biden Pardons Veterans Convicted of Having Gay Sex*, N.Y. [Times](#), June 26, 2024.

⁷⁶ See JUSTICE MANUAL, *supra* note 31, at § 7-3.300 (“an organization or individual that [self-reports and] meets the criteria for leniency will not be charged criminally for the illegal activity”); *id.* at §§ 7-3.310 to .340 (detailing Antitrust Division leniency policy and procedures); *Leniency Program*, *supra* note 65 (describing leniency program as the “most important investigative tool for detecting cartel activity” and a means to “avoid criminal conviction, fines, and prison sentences”).

⁷⁷ See Brandon L. Garrett, *Declining Corporate Prosecutions*, 57 Am. Crim. L. Rev. 109, 110 (2020) (noting that beginning in the early 2000s, “DOJ emphasized large-scale settlements using deferred and non-prosecution agreements”). Not all corporate criminal conduct is addressed through NPAs; many firms are prosecuted and plead guilty. See Brandon L. Garrett, *Globalized Corporate Prosecutions*, 97 Va. L. Rev. 1775 (2013) (analyzing federal prosecutions with a focus on foreign corporations).

⁷⁸ See JUSTICE MANUAL, *supra* note 31, § 9-28.000 (2023) (Principles of Federal Prosecution of Business Organizations describing, *inter alia*, non-prosecution agreements and guilt plea

Both of those policies demonstrate the utility of discretionary impunity. Both antitrust policy and NPAs provide impunity from criminal liability but achieve some measure of accountability by other means. Both forsake criminal law's principle of punishing the culpable in accord with their just deserts in favor of pragmatic advantages for the state, such as conserving enforcement resources, remediating past harms, and preventing future ones.⁷⁹

In broad strokes, corporate NPAs overlap in concept with very different models. Practices as distinct as federal witness immunity and national Truth and Reconciliation Commissions likewise grant relief from criminal liability in exchange for fully disclosing wrongdoing. Drug treatment courts and other diversion programs offer the same in exchange for acts of remediation and prevention, such as fulfilling drug treatment and community service obligations.

More broadly, all prosecutors decline to prosecute offenses for a wide range of reasons beyond insufficient evidence and lack of resources. One is that prosecutors follow contemporary social norms against enforcing certain offenses, such as crimes (like adultery)⁸⁰ that have fallen into desuetude. We noted examples of legislature's distrusting prosecutors' discretion; here, declination suggests prosecutorial distrust of legislatures' judgments about what conduct is harmful or blameworthy.

In other cases, however, social norms have led prosecutors not to charge for indisputably serious wrongdoing. Consider patterns of underenforcement of sexual assault and domestic violence offenses, and of crimes against disfavored populations such as sex workers and undocumented workers.⁸¹

agreements, information disclosure, corporate monitors, remediation, and corporate compliance programs).

⁷⁹ Of course, specific discretionary practices can be open to criticism. See Garrett, *Declining Corporate Prosecutions*, supra note 77, at 122 (criticizing some NPA terms and finding that under DOJ policy changes since 2017, “still-more-lenient declinations for corporate crimes are now displacing non-prosecution agreements”).

⁸⁰ See, e.g., Va. Code Ann. § 18.2-365 (2024).

⁸¹ Alexandra Natapoff, *Underenforcement*, 75 Fordham L. Rev. 1715, 1735-40 (2006); Aya Gruber, Rape, *Feminism, and the War on Crime*, 84 Wash. L. Rev. 581, 584-94 (2009).

More starkly, widespread failures to prosecute racial lynchings are in the early twentieth century are well documented.⁸² The reasons of greatest concern behind impunity for lynchings are abuse of power. At worst, executive officials were not merely acceding to popular support for lynchings; facilitating violent criminal conduct served their personal or political interests.⁸³

Prosecutors also occasionally accede to public objections to prosecutions for very different purposes—because criminal charges would be too politically divisive—a purpose frequently invoked for presidential pardons.⁸⁴ One example is the Obama Justice Department’s decision not to prosecute officials in the prior Bush administration who were involved in alleged torture of post-9/11 detainees.⁸⁵ The policy tracked Obama’s long-stated “interest[] in looking forward” not backward,⁸⁶ although looking backward describes ordinary criminal process. The policy implied magnanimity toward political rivals but—as impunity often does—it still elicited sharp criticism.⁸⁷

Reform prosecutors. Over the last decade, expansive declination policies by “progressive” or reform prosecutors have drawn considerable attention.⁸⁸

⁸² See Equal Justice Initiative, *LYNCHING IN AMERICA: CONFRONTING THE LEGACY OF RACIAL TERROR* (3d ed. 2017) (“[W]hite press coverage regularly defended the lynchings as justified; and cursory investigations rarely led to identifications of lynch mob members, much less prosecutions.”), at <https://lynchinginamerica.eji.org/report/>.

⁸³ For a notorious example, see *Fatal Flood: James K. Vardaman*, American Experience (PBS) (noting Vardaman, Mississippi’s governor, once declared, “if it is necessary every Negro in the state will be lynched; it will be done to maintain white supremacy”), at <https://www.pbs.org/wgbh/americanexperience/features/flood-varadaman/>.

⁸⁴ See *infra* discussion Part III.B.2.a.

⁸⁵ See, e.g., Glenn Greenwald, *Obama’s Justice Department Grants Final Immunity to Bush’s CIA Torturers*, [Guardian](#).com, Aug. 31, 2012; U.S. Dep’t of Justice, *Press Release 11-861: Statement of the Attorney General Regarding Investigation into the Interrogation of Certain Detainees*, [June 30](#), 2011 (concluding “expanded criminal investigation” of most interrogation-treatment cases “is not warranted”).

⁸⁶ See Editors, *A Truth Commission for the Bush Era?*, N.Y. [Times](#), Mar. 2, 2009 (“President Obama has said he was ‘more interested in looking forward than I am in looking backwards.’”). To be precise, whether the government declined for insufficient evidence to prove guilt or for other reasons was never clear from the Justice Department’s explanations. See *Statement of the Attorney General*, June 30, 2011, *supra* note 85.

⁸⁷ See, e.g., Greenwald, *supra* note 85.

⁸⁸ Some prosecutors and scholars disfavor the label “progressive prosecutor.” See, e.g., Benjamin Levin, *Imagining the Progressive Prosecutor*, 105 Minn. L. Rev. 1415, 1416–17 (2021) (expressing skepticism and noting lack of agreement about the meaning of “progressive

These policies vary considerably. A few are categorical bans on charging certain offenses⁸⁹ or on harsh sentencing options.⁹⁰ More often, they declare presumptions against charging specified crimes subject to case-specific

prosecutor”); *id.* at 1422 (noting a number of prosecutors embrace the “progressive” label); Jeffrey Bellin, *Expanding the Reach of Progressive Prosecution*, 110 J. Crim. L. & Criminology 707, 711 (2020) (noting that Cook County prosecutor Kim Foxx “stressed that she does not see herself as a progressive prosecutor.”).

⁸⁹ See, e.g., Justin Jouvenal & Rachel Weiner, *Prosecutors won’t pursue marijuana possession charges in 2 Northern Va. counties*, Wash. [Post](#), Jan. 2, 2020 (describing Virginia prosecutors’ policies not to prosecute adults possessing small amounts of marijuana for personal use); Justin Murray, *Prosecutorial Nonenforcement and Residual Criminalization*, 19 Ohio St. J. Crim. L. 391, 399-403 (2022) (discussing four Virginia prosecutors’ policies not to enforce marijuana possession offenses); Miriam Aroni Krinsky, *CHANGE FROM WITHIN: REIMAGINING THE 21ST-CENTURY PROSECUTOR* 187 (2022) (Baltimore prosecutor Marilyn Mosby’s nonprosecution policy for marijuana possession); Jeff Amy, *Georgia prosecutors are suing to strike down a new state law that undermines their authority*, AP [News](#), Aug. 8, 2023 (noting Georgia prosecutor’s ban on charging adultery); Murray, *supra* note 20 (assessing examples nonenforcement policies).

⁹⁰ See Meighan R. Parsh & Carissa Byrne Hessick, *The Nuances of Prosecutorial Nonenforcement*, 67 Wm. & Mary L. Rev. 399, 421-48 (2025) (describing varieties of nonenforcement policies); Jordan Smith, *The Power to Kill: What Happens When a Reform Prosecutor Stands Up to the Death Penalty*, INTERCEPT (Dec. 3, 2019) (describing Florida prosecutor Aramis Ayala’s policy not to seek the death penalty), <https://theintercept.com/2019/12/03/death-penalty-reform-prosecutors/> [<https://perma.cc/92EH-BL8V>]; M. Krinsky, *supra* note 89, at 36 (same for N.C. prosecutor Satana Deberry); Death Penalty Info. Ctr., *Local Prosecutor Elections Foreshadow Continued Movement away from Death Penalty* (Nov. 4, 2020), at <https://deathpenaltyinfo.org/news/local-prosecutor-elections-foreshadow-continued-movement-away-from-death-penalty> (discussing newly elected DAs who pledged not to seek death penalty); Murray, *Residual Criminalization*, *supra* note 89, 407-10 (describing Los Angeles prosecutor Georg Gascón’s policy not to charge certain sentence enhancements).

conditions.⁹¹ Some simply aim for greater use of diversion programs and drug treatment as alternatives to prosecution, especially for young offenders.⁹²

Reform prosecutors offer a range of justifications for their policies.⁹³ Many seek to reduce incarceration rates and to redress inequitable patterns of enforcement against racial minorities and marginalized groups.⁹⁴ Often, reform prosecutors challenge the traditional notion that more enforcement and harsher punishment prevent more crime. They argue that prevention is more

⁹¹ See, e.g., Rachael Rollins, *Charges to Be Declined*, RACHAEL ROLLINS FOR SUFFOLK DA(2018) (inactive website preserved at <https://perma.cc/AU5Y-FKAW>) (Massachusetts prosecutor's list of offenses under a presumption of nonenforcement including shoplifting, drug possession with intent to distribute, trespassing, and larceny under \$250); Memorandum from Larry Krasner, Dist. Attorney, City of Philadelphia, New Policies Announced February 15, 2018 (nonprosecution presumption for certain drug and prostitution offenses) at <https://www.documentcloud.org/documents/4412996-Krasner-Memo-March-13-2018.html#document/p1>; Fair and Just Prosecution, *Joint Statement From Elected Prosecutors* (updated May 2023) (hereinafter *Joint Statement*) (policy statement disfavoring enforcement of crimes related to abortion services); Fair and Just Prosecution, *Joint Statement From Elected Prosecutors and Law Enforcement Leaders Condemning The Criminalization of Transgender People And Gender-Affirming Healthcare* (hereinafter *Criminalization Statement*) (June 2021) (disfavoring enforcement of crimes related to transgender persons and care); see also Fair and Just Prosecution, *21 Principles for the 21st Century Prosecutor* (2018) (hereinafter *21 Principles*) (reform prosecutors' group policy statement urging principles such as "charge with restraint" and "[d]on't file the maximum possible charge as a matter of course") at <https://fairandjustprosecution.org/>.

⁹² See Larry Krasner, FOR THE PEOPLE: A STORY OF JUSTICE AND POWER 114 (2022) (criticizing "America's punitive, prohibitionist approach to the use of drugs" and endorsing "support and treatment" for users); M. Krinsky, *supra* note 89, at 136-37 (reporting Brooklyn prosecutor's claim to have reduced prosecutions by 40 percent by sending more to diversion programs); *id.* 156-65 (reporting Seattle prosecutor's emphasis on drug treatment and social services over prosecution); Angela J. Davis, *Reimagining Prosecution: A Growing Progressive Movement*, 3 UCLA Crim. Just. L. Rev. 1, 13-14 (2019) (describing Seattle prosecutor's emphasis on diversion programs); Jeffrey Bellin, *Theories of Prosecution*, 108 Cal. L. Rev. 1203, 1239-40 (2020) (diversion programs are a "hallmark[] of progressive prosecution"); FJP, *21 Principles*, *supra* note 91, at 4 (urging prosecutors to "make diversion the rule").

⁹³ See Parsh & Hessick, *supra* note 90, at 448-58 (summarizing nonenforcement justifications).

⁹⁴ See Parsh & Hessick, *supra* note 90, at 430; Davis, *supra* note 92, at 5 (arguing progressive prosecutor "could use her power and discretion to institute policies and practices that would reduce the incarceration rate and unwarranted racial disparities."); *id.* at 3 (describing racial disparities throughout criminal legal system); FJP, *21 Principles*, *supra* note 91, at 15 (urging prosecutors to "[p]ublicly commit to reducing racial and ethnic disparities that arise from prosecutorial practices."); Benjamin Levin, "Progressive" Prosecutors and "Proper" Punishments, in THE OXFORD HANDBOOK ON SENTENCING 1, 4-5 (Ryan King & Michael Light, eds., forthcoming 2026) (describing agendas of "the prosecutorial progressive," which include addressing racial disparities and shifting resources from enforcement against "marginalized defendants" to "powerful" ones).

effective through noncriminal policies—such as improved social services, education and job opportunities.⁹⁵ Some limit their requests for prison sentences by requiring case-by-case assessments of incarceration’s costs and benefits.⁹⁶ A separate motivation for some of these policies is simply a disagreement with the legislative judgment that certain conduct is wrongful and merits criminalization.⁹⁷ Finally, reform prosecutors often insist that consistently declining to prosecute certain offenses strengthens the rule of law and public respect for the law and legal institutions.⁹⁸ Some emphasize the context-specific nature of that project: prosecutor strategies must respond to histories of injustice suffered by racial and other minority communities that

⁹⁵ See M. Krinsky, *supra* note 89, at 74 (quoting Kansas prosecutor Mark Dupree that “the best form of [crime] prevention is education and economic growth.”); *id.* at 227-28 (quoting King County prosecutor Dan Satterberg, “the role of the prosecutor is ... to build a safer and healthier community. You do that in partnership with the government and public health entities — and with the community.”); Carissa Byrne Hessick, *Pitfalls of Progressive Prosecution*, 50 *Fordham Urb. L.J.* 973, 974 (2023) (“[T]he traditional prosecutor seeks to reduce crime by becoming more punitive The progressive prosecutor ... believes that reducing crime is best achieved by addressing ‘root causes’ — e.g., by increasing spending on social services that address poverty and increase other opportunities.”).

⁹⁶ Jennifer Gonnerman, *Larry Krasner’s Campaign to End Mass Incarceration*, *New Yorker* (Oct. 22, 2018) (noting Philadelphia prosecutor’s policy that “each time a prosecutor wanted to send somebody to prison, he had to calculate the cost of that imprisonment (an estimated forty-two thousand dollars per inmate per year) ... and explain the ‘unique benefits’ of the punishment”).

⁹⁷ FJP, *Joint Statement*, *supra* note 91 (prosecutors condemning criminalization of conduct related to abortion services); FJP, *Criminalization Statement*, *supra* note 91 (prosecutors condemning criminalization of gender-affirming care); M. Krinsky, *supra* note 89, at 220 (reporting views of King County prosecutor Dan Satterberg). See also Rogers, *supra* note 75 (announcing 2,000 pardons for military convictions between 1951 and 2013, Biden explained, “I am righting an historic wrong ... [imposed on] former service members who were convicted simply for being themselves”).

⁹⁸ FJP, *Joint Statement*, *supra* note 91, at 1-2:

Enforcing abortion bans ... will erode trust in the legal system, hinder our ability to hold perpetrators accountable, ... [and] disproportionately harm victims of sexual abuse, rape, incest, human trafficking, and domestic violence.... Keeping communities safe inherently requires promoting trust and faith in the integrity of the rule of law. To best promote public safety, prosecutors must be perceived by their communities as trustworthy, legitimate, and fair — values that would be undermined by the enforcement of laws that criminalize deeply personal decisions

has resulted in widespread, intergenerational distrust of criminal law institutions.⁹⁹

These declination policies, then, respond to a range of competing interests in tension with criminal law enforcement. Unsurprisingly, some meet with vigorous objections.¹⁰⁰ In most cases, declinations are deeply contextual and political assessments made in light of local or national histories and community sentiment; they are decisions especially well-suited for political officials relatively unimpaired by impunity-constraining rules.¹⁰¹ Yet that is truer for some reform prosecutor ambitions than others. Local prosecutors seem well positioned to assess the efficacy of prosecuting, say, drug possession offenses. On the other hand, objections to criminalization of, say, conduct related to abortion services raises a thornier question of democratic theory—whether a locally elected official, in accord with a local electorate’s preferences, can legitimately reject duly enacted state laws that accord with statewide voter

⁹⁹ See Ronald F. Wright, *Community Prosecution and Building Trust Across a Racial Divide*, in THE OXFORD HANDBOOK PROSECUTORS AND PROSECUTION 413, 414-16 (Ronald F. Wright et al. eds. 2021); see generally M. Krinsky, *supra* note 89 (recounting prosecutors’ attention to national history of racism and erosion of trust in law).

¹⁰⁰ See Ga. Code § 15-18-32(i)(2)(E) (prohibiting any prosecutor “policy ... that ... categorically refuses to prosecute any offense or offenses of which he or she is required by law to prosecute”); Tex. Local Gov. Code § 87.011(3) (2023) (prohibiting “a prosecuting attorney’s adoption or enforcement of a policy of refusing to prosecute a class or type of criminal offense under state law”); *id.* § 87.0135 (similar); J Comacho, et al., *supra* note 38 (describing state laws targeting prosecutor declination policies); Hessick, *supra* note 95, at 982-84 (describing pushback against reform prosecutors by state officials, and voters); U.S. Dep’t of Justice, PRESIDENT’S COMMISSION ON LAW ENFORCEMENT AND THE ADMINISTRATION OF JUSTICE 6 (2020) (condemning “self-identified ‘progressive’ or ‘social reform’ prosecutors” as a “threat to the rule of law” who “undermine [the legal] system by unilaterally deciding not to enforce certain laws” and thereby “causes violent crime rates to go up”); Mark Berman, *These Prosecutors Won Office Vowing to Fight the System. Now, the System Is Fighting Back*, Wash. Post (Nov. 9, 2019) [<https://perma.cc/TM48-KZWP>] (“lawmakers, governors, police union leaders, fellow district attorneys and Trump administration officials have been sharply critical, with some saying progressive prosecutors ... will drive up crime rates”); *Ayala v. Scott*, 224 So. 3d 755, 758 (Fla. 2017) (affirming governor’s removal of a prosecutor for adopting a policy not to seek the death penalty).

¹⁰¹ That is not to say all constraints on discretion would be counterproductive, particularly rules that foster consistency and restrict bias in charging decisions, which is one aim of formal declination policies. See also *United States v. Armstrong*, 517 U.S. 456 (1996) (prohibiting racially motivated charging decisions).

sentiment.¹⁰² Holding such harder cases aside, presumptive-enforcement rules undermine officials' capacity to adjust charging decisions in response to specific social contexts in service of trust-building, community reconciliation, and the utility of other options for accountability and harm prevention.¹⁰³

2. *Pardons and amnesties*

The greatest prerogative power to dispense impunity is the presidential pardon (a power granted also to some state governors).¹⁰⁴ Presidents need not explain pardons, and their reasons for doing so are not always clear.¹⁰⁵ Many pardons do not grant impunity, such as those granted after recipients serve long sentences, or pardons that correct wrongful convictions or historical injustices.¹⁰⁶ The focus here is limited to pardons that grant impunity to the

¹⁰² For a thoughtful treatment of this issue, see Murray, *supra* note 20. A slightly different question is raised by the Arizona governor's order removing local prosecutors' discretion over abortion-crime enforcement and centralizing it in the office of the state attorney general. See Gov. Katie Hobbs, *Executive Order 2023-11: Protecting Reproductive Freedom and Healthcare in Arizona* (June 22, 2023). Given the clear implication that this policy is a strategy to ensure statewide non-enforcement, it presents a question of whether the executive has discretion to consistently decline enforcement of a validly enacted statute. See also Ariz. Const. art. 5 § 4 (governor "shall take care that the laws be faithfully executed").

¹⁰³ This is notwithstanding the fact that presumptive-enforcement rules, like presumptive-declination policies, can have the virtue of fostering consistent treatment of like cases. See *infra* notes 113-14 (citing German criminal procedure code's legality principle).

¹⁰⁴ In some states, a governor's clemency power is limited either by legislation or by a pardon board with independent authority. See, e.g., Ga. Const. art. IV § 2 (defining constitutional role of State Board of Pardon and Paroles); Tex. Const. art. IV § 11 (same); see also Cal. Const. art. V § 8(a) (governor may grant pardons "subject to application procedures provided by statute" and "to a person twice convicted of a felony" only "on recommendation of the Supreme Court"); Fla. Const. art. IV § 8 (governor may grant pardons "with the approval of two members of the cabinet" but reserving to the legislature the power to pardon for treason); N.Y. Const. art. IV § 4 (reserving to the legislature the power to grant pardons for treason); Utah Const. art. VII § 12 (Board of Pardons may "grant pardons after convictions ... subject to regulations as provided by statute"; governor may grant only temporary "reprieves"); Idaho Const. art. IV § 7 (same); Wash. Const. art. III § 9 (governor's pardon power subject to "such regulations and restrictions as may be prescribed by law").

¹⁰⁵ See, e.g., Louis Fisher, *The Law: When Presidential Power Backfires: Clinton's Use of Clemency*, 32 Pres. Stud. Q. 586, 589-97 (2002) (arguing Clinton's reasons for pardoning FALN Puerto Rican nationalists and various political supporters are puzzling or unclear).

¹⁰⁶ See, e.g., Rogers, *supra* note 75 (quoting Biden announcing "I am righting an historic wrong by using my clemency authority"); cf. John Ismay, *Navy Exonerates Black Sailors Unfairly Convicted After World War II Disaster*, N.Y. Times, July 17, 2024 (Navy Secretary exonerating black servicemembers wrongly convicted in "sham trial[s]" in 1944). Compare Pres. Trump,

provably guilty—that either preempt prosecution or spare an offender from most of his sentence.¹⁰⁷ On occasion, impunity pardons are broadly popular. Governors in several states, for example, issued mass pardons for marijuana offenders after a shift in popular support for legalizing marijuana.¹⁰⁸ In that context, amnesty is viewed as fair treatment with little cost of not holding wrongdoers to account.¹⁰⁹ The more challenging—and common—examples are pardons or amnesties to groups for serious wrongdoing in the wake of wars, regional uprisings, or other illegal resistance of government policies.

a. Pardons and amnesties for national reconciliation

Exec. Order 14202, 90 Fed. Reg. 9365 (Feb. 6, 2025) (granting clemency to anti-abortion protesters convicted of violating the FACE Act—which prohibits obstructing access to abortion clinics —asserting that clemency “rectified th[e] injustice” of “a politically motivated prosecution campaign by the Biden Administration.”).

See generally U.S. Dep’t of Justice, Office of the Pardon Attorney, *Clemency Statistics* (updated May 1, 2024) (compiling data on clemency actions for all presidents since 1897), at <https://www.justice.gov/pardon/clemency-statistics>; Office of the Pardon Attorney, *Clemency Recipients* (updated July 20, 2023) (compiling data on clemency recipients for presidents since 1969), at <https://www.justice.gov/pardon/clemency-recipients>. I also hold aside commutations that merely shorten sentences and pardons based on recognition of wrongful convictions or disproportionate punishment, as well as those based on evidence of rehabilitation.

¹⁰⁷ Presidents sometimes concede recipients’ culpability in pardon announcements. See Gerald Ford, Proclamation 4313 & Exec. Orders 11803 & 11804 (Sept. 16, 1974), 39 Fed. Reg. 33293 (Sept. 17, 1974) (“Reconciliation among our people does not require that these [pardoned] acts be condoned.”); John Adams, *Proclamation of Pardons to Those Engaged in Fries Rebellion* (May 21, 1800) (granting pardons to “the ignorant, misguided, and misinformed” after their “wicked and treasonable insurrection” in Fries’ Rebellion). As for recipients of pardons for the January 6 Capitol riot, the vast majority had been convicted. See NPR, *Jan. 6 Archive: The Capitol Charges* (reporting 1,575 defendants as of January 2025, 1,270 convictions, 2 acquittals and 14 dismissals), available at <https://apps.npr.org/jan-6-archive/database.html>.

¹⁰⁸ See Erin Cox, Katie Shepherd & Katie Mettler, *Maryland governor pardons 175,000 Marijuana Convictions in Sweeping Order*, *Wash. Post*, June 17, 2024 (reporting pardons that “forgive low-level marijuana possession charges for an estimated 100,000 people”); NORML, *Marijuana Pardons and Expungements: By the Numbers* (reporting gubernatorial pardons in ten states since 2018, many covering several thousand cases), at <https://norml.org/marijuana/fact-sheets/marijuana-pardons-and-expungements-by-the-numbers/>. On shifting public opinion, see Pew Res. Center, *Most Americans Favor Legalizing Marijuana for Medical, Recreational Use* (Mar. 26, 2024) (reporting 88% of U.S. adults support full legalization of marijuana).

¹⁰⁹ See Cox, Shepherd & Mettler, *supra* note 108 (reporting Md. Gov. Moore’s statement that pardons are “a step to heal decades of social and economic injustice that disproportionately harms Black and Brown people”).

Beginning with Washington, presidents have pardoned serious wrongdoers whose crimes occurred in such contexts. The first four presidents pardoned many serious wrongdoers in circumstances of significant political dissension. Washington pardon Whiskey Rebellion offenders convicted of treason; Adams did the same for Fries' Rebellion offenders; Jefferson and Madison both pardoned army deserters.¹¹⁰ Other presidents have done the same after every major war. Lincoln issued several group pardons, conditioned on loyalty to the United States, for Confederates as well as Union army deserters during the Civil War.¹¹¹ Andrew Johnson eventually pardoned nearly all participants in that war, including (despite congressional objections) to nearly all Confederates.¹¹² Presidents Wilson, Coolidge, and both Roosevelts granted amnesties to large numbers of offenders for military- and war-related crimes including desertion and espionage.¹¹³ Truman issued a series of orders granting amnesty for some (but not most) offenders guilty of draft avoidance during World War II.¹¹⁴ President Ford in 1974 granted amnesty—conditioned on fulfilling two years in community service—to Vietnam-era draft avoiders

¹¹⁰ P.S. Ruckman Jr., *Executive Clemency in the United States: Origins, Development, and Analysis (1900-1993)*, 27 Pres. Stud. Q. 251, 253-54 (1997) (recounting Washington's pardons for Whiskey Rebellion participants convicted of treason, Adams's pardons of Fries Rebellion insurrectionists protesting land valuation laws, and Jefferson and Madison's pardons of army deserters); see also Murray Illson, *At least 12 Presidents Involved in Pardon or Amnesty Moves*, N.Y. Times, Jan. 22, 1977; Louis Lusky, *supra* note 58, at 527-28 & nn. 9-12 (recounting pardons and amnesties from Presidents Washington through Truman).

¹¹¹ Etridge et al., *supra* note 58, at 9-11 (noting pardons conditioned on swearing allegiance to the United States and, for deserters, returning to military service).

¹¹² *Id.* at 11-13.

¹¹³ *Id.* at 15-16 & 20.

¹¹⁴ *Id.* at 16-17. In 1952, at the end of his term, Truman pardoned servicemembers who had been court-martialed or dishonorably discharged for desertion during the Korean War, but the primary intention and effect of these orders were to restore civil rights rather than impunity from criminal sanction. *Id.* at 17. The same is true for some pardons issued by earlier presidents, although others—such as those issued by Washington, Lincoln, and Johnson—insulated many recipients from criminal prosecution and punishment.

and military deserters.¹¹⁵ President Carter, on his first day in office, extended full pardons to draft avoiders.¹¹⁶

The important common thread in these grants of impunity is their purpose: presidents often intend such pardons to facilitate something like national tranquility, unity, or reconciliation. (Governments elsewhere have often included amnesties as components of peace agreements or government transitions).¹¹⁷ Johnson insisted his post-Civil War pardons would “remove all appearances or presumptions of a retaliatory or vindictive policy” and “promote and procure complete fraternal reconciliation among the whole people.”¹¹⁸ President Ford argued his Vietnam-era pardons served the same end:

Desertion in time of war is a major, serious offense; failure to respond to the country's call for duty is also a serious offense. Reconciliation among our people does not require that these acts be condoned. Yet,

¹¹⁵ See Ford, Proclamation 4313, *supra* note 107 (also requiring pardon applicants to apply before Jan. 31, 1975); Majorie Hunter, *A Re-Entry Plan*, N.Y. Times, Sept. 17, 1974, at 1.

¹¹⁶ See Proclamation 4483 and Exec. Order 11967 (Jan. 21, 1977), 42 Fed. Reg. 4391 (Jan. 24, 1977); Andrew Glass, *President Carter Pardons Draft Dodgers, Jan. 21, 1977*, [POLITICO](https://www.politico.com/news/1977/01/21/carter-pardons-draft-dodgers) (Jan. 21, 2018) (describing Carter’s amnesty order).

¹¹⁷ See, e.g., U.S. Inst. of Peace, *Reconciliation*, at <https://www.usip.org/issue-areas/reconciliation>; Promotion of National Unity and Reconciliation Act 1995, art. 2 (South Africa) (creating Truth and Reconciliation Commission); Northern Ireland Troubles (Legacy and Reconciliation) Act 2023 (Sept. 18, 2023); Lisa J. Laplante, *Dialogues of Transitional Justice: Memory Battles: Guatemala's Public Debates and the Genocide Trial of Jose Efraim Rios Montt*, 32 Quinnipiac L. Rev. 621, 637-38 (2014) (discussing Guatemalan “historical clarification” commission and amnesty law); William A. Schabas, *Amnesty, the Sierra Leone Truth and Reconciliation Commission and the Special Court for Sierra Leone*, 11 U.C. Davis J. Int’l L & Policy 145 (2004) (describing Sierra Leone Truth and Reconciliation Commission).

¹¹⁸ Andrew Johnson, *Proclamation 170—Granting Pardon to All Persons Participating in the Late Rebellion Except Those Under Indictment for Treason or Other Felony*, July 4, 1868, available at Gerhard Peters and John T. Woolley, *The American Presidency Project*, <https://www.presidency.ucsb.edu/node/202903>; see also Andrew Johnson, *Proclamation 167—Offering and Extending Full Pardon to All Persons Participating in the Late Rebellion*, Sept. 7, 1867 (“a retaliatory or vindictive policy, attended by unnecessary ... penalties... could only tend to hinder reconciliation among the people and national restoration”); Andrew Johnson, *First Annual Message*, Dec. 4, 1865 (“general amnesty” is consistent with “spirit of mutual conciliation” and enables “All parties in the late terrible conflict [to] work together in harmony”).

reconciliation calls for an act of mercy to bind the Nation's wounds and to heal the scars of divisiveness.¹¹⁹

Ford also cited national unity to justify his pardon of former president Nixon: “the tranquility to which this nation has been restored by ... [Nixon’s resignation] could be irreparably lost by the prospects of bringing to trial a former President of the United States.”¹²⁰ Other presidents have offered similar explanations for pardons in wartime and other contexts.¹²¹

Grants of impunity for this purpose are often controversial.¹²² They are, after all, granted when the public is sharply divided—either the wrongfulness of pardon recipients’ conduct or more generally, as in the Civil War. In these pardons, presidents recognize—and accede to—a constituency that favors

¹¹⁹ Ford, Proclamation 4313, *supra* note 107; see Andrew Glass, *Ford issues partial amnesty to Vietnam deserters*, *Sept. 16, 1974*, [Politico](#) (Sept. 16, 2018); see also Hunter, *supra* note 115, at 24 (reporting Ford’s explanation that conditional pardons were “my honest and conscientious effort to heal the wounds for those who had deserted military service or dodged the draft”).

¹²⁰ Pres. Ford, Proclamation 4311 (Sept. 8, 1974), 39 Fed. Reg. 32601 (1974) (also stating “The prospects of such trial will cause prolonged and divisive debate over the propriety of exposing to further punishment and degradation a man who has already paid the unprecedented penalty of relinquishing the highest elective office of the United States.”). Note Ford’s emphasis that, in the “penalty” of resignation, Nixon, did not escape accountability.

¹²¹ Washington’s explanation for pardoning participants in the 1794 Whiskey Rebellion hit similar notes: “my personal feeling is to mingle in the operations the Government every degree of moderation and tenderness which the national justice, dignity and safety may permit.” Etridge et al., *supra* note 58, at 7 (quoting James D. Richardson, 1 COMPILATION OF THE MESSAGES AND PAPERS OF THE PRESIDENTS 276-77 (1897)). See Gerard N. Magliocca, *Amnesty And Section Three Of The Fourteenth Amendment*, 36 Const. Commentary 87, 88 (2021) (describing 1898 Amnesty Act, removing civil disabilities on former Confederates, “as a gesture of national unity during the Spanish-American War”); Lusky, *supra* note 58, at 541 (citing “national interest in healing the societal wounds” as rationale for amnesty laws in the wake of the Vietnam war). President Tyler urged the Rhode Island government to grant “general amnesty and pardon” as “measures of conciliation” upon which he predicted “all difficulty would at once cease.” John Tyler, *Special Message*, May 9, 1842, available at Peters & Woolley, *supra* note 118.

¹²² See Charles Mohr, *10,000 Affected Now*, N.Y. Times, Jan. 22, 1977, at 1 (noting these criticisms of Carter’s pardon from members of Congress and others); Clifton Daniel, *Ford’s Gallup Rating Off 21 Points After Pardon*, N.Y. Times, Oct. 13, 1974, at 1 (reporting President Ford’s public approval rating dropped from 66% to 50% after his pardon of Nixon); Etridge et al., *supra* note 58, at 10-13 (noting congressional objections to Johnson’s amnesties); Paul Douglas Newman, *FRIES’S REBELLION: THE ENDURING STRUGGLE FOR THE AMERICAN REVOLUTION 184-85* (2005) (noting objections among political allies to Adams’s Fries’ Rebellion pardons)

impunity over accountability. A darker corollary premise is more interesting: presidents recognize that holding offenders accountable through ordinary criminal process would be divisive; a considerable number of people would view punishment of the culpable as—in Johnson’s words—“retaliatory or vindictive.” This is at odds with the dominant anti-impunity valence of criminal law policy that predicts impunity will encourage future wrongdoing,¹²³ and with the idea that fair enforcement of criminal law *promotes* social cohesion.¹²⁴

What this reveals is the contingency of criminal law’s legitimacy on the political context in which it operates. The social meaning of ordinary criminal law enforcement varies with politically salient circumstances. In granting reconciliation pardons, presidents recognize that, when offenders’ wrongdoing is related to issues over which a polity is sharply divided, some will view prosecution of the provably guilty as unjustified because they perceive it as vindictive or otherwise unjust. And those perceptions are strong enough that criminal law enforcement, through fair trial processes, fosters social dissention and could disrupt civil peace. Or so many presidents have concluded, despite

¹²³ See discussion *supra* Part II.B. See also Engle, *Genealogy*, *supra* note 48, at 33 (“The amnesties that exempt from criminal sanction those responsible for atrocious crimes in the hope of securing peace have often failed to achieve their aim and have instead emboldened their beneficiaries to commit further crimes,” quoting *Gelman v. Uruguay* (IACtHR Feb. 24, 2011) para. 199).

¹²⁴ See Steven A. Koh, *Criminal Law’s Hidden Consensus*, 101 Wash. U. L. Rev. 1805, 1838 (2024); *id.* at 1843 (criminal law “process must always exist to affirm social cohesion and collective values—particularly for the values that undergird the very structure of our society.... Without meaningful public accountability for such crimes, American solidarity will corrode”). In other countries, amnesties have sometimes been revoked in response to public disapproval. See Patricio Nazareno, *Impunity Reconsidered: International Law, Domestic Politics, and the Pursuit of Justice*, 33 Harv. Hum. Rts. J. 173 (2020) (describing how Argentina revoked amnesty for former military junta leaders and acceded to popular anti-impunity demands leading to trials); Alviar García & Engle, *supra* note 58, at 228-37 (describing political opposition to peace agreements that included amnesty or leniency for some crimes and combatants); Lisa J. Laplante, *Outlawing Amnesty: The Return of Criminal Justice in Transitional Justice Schemes*, 49 Va. J. Int’l L. 915, 929-31 (2009) (describing opposition to South Africa’s amnesty law, although not prompting repeal); *id.* at 955-64 (opposition to Peruvian amnesty law).

strong opposition to impunity from large constituencies.¹²⁵ By granting reconciliation pardons, presidents—operating in a context of sharply divided politics—see impunity rather than accountability as the better path to political reconciliation and social cohesion.¹²⁶

That insight sets the stage, in the current era of stark political dissension, for reevaluating three recent choices between impunity and accountability: pardons for January 6 Capitol riot offenders; the prosecution of Donald Trump during the Biden administration; the Supreme Court’s recognition of criminal immunity for presidents in *Trump v. United States*.

b. Pardon versus prosecution of January 6 participants

In his mass pardon of nearly 1,600 participants in the January 6 Capitol riot, President Trump asserted that “[t]his proclamation ends a grave national injustice that has been perpetrated upon the American people over the last four years and begins a process of national reconciliation.”¹²⁷ High U.S. political polarization is widely recognized and well documented,¹²⁸ and public opinion specifically about the January 6 Capitol riot divided along partisan lines.¹²⁹ In that context, reconciliation pardons would seem well-timed. But

¹²⁵ Cf. Mohr, *supra* note 122, at 1 (noting criticisms that Carters’ pardons for draft avoiders were unfair when compared both to those who submitted to military conscription, and to army deserters).

¹²⁶ See Koh, *supra* note 124, at 1838 (criminal law enforcement “plays a crucial role in promoting social cohesion” especially with regard to anti-corruption and public integrity offenses that bolster civil society norms).

¹²⁷ Pres. Trump, Proclamation 10887, *supra* note 13; see also NPR, *Jan. 6 Archive*, *supra* note 107 (reporting 1,575 defendants as of January 2025, 249 trial convictions, 1021 GPs, 2 acquittals, 14 dismissals).

¹²⁸ Jeffrey Jones, *Americans Agree Nation Is Divided on Key Values*, [Gallup.com](https://www.gallup.com), Sept. 23, 2024 (“A record-high 80% of U.S. adults believe Americans are greatly divided on the most important values, while 18% believe the country is united.”); Pew Res. Center, *Republicans and Democrats increasingly critical of people in the opposing party*, [PewResearch.org](https://www.pewresearch.org), Aug. 9, 2022 (In 2022 survey, 72% of Republicans and 63% of Democrats viewed the opposing party as more immoral than other Americans, up substantially from 47% and 35% in 2016.).

¹²⁹ Rachel Weiner, Scott Clement & Emily Guskin, *Republican loyalty to Trump, rioters Climbs in 3 years after Jan. 6 Attack*, Wash. Post, Jan. 2, 2024 (55% of U.S. poll respondents viewed Capitol riot as “an attack of democracy—86% of Democrats and 24% of Republicans. And Republicans in January 2024 were “more sympathetic to those who stormed the U.S. Capitol and more likely to absolve Donald Trump of responsibility for the attack than they were in

while the efficacy of any pardons in making progress toward such a goal is impossible to measure, circumstances surrounding Trump's January 6 pardons distinguish it from earlier presidential pardons invoking the same ambition.

Most notably, no previous president had encouraged the treason, Army desertion, or draft avoidance offenses they subsequently pardoned. But Trump encouraged the conduct of pardon recipients.¹³⁰ And his statements during a two-year campaign surely contributed to the shift between 2021 and 2024 in Republicans' views about January 6,¹³¹ increasing public division and thereby the need for reconciliation. Two related features of this contrast undermine Trump's stated ambitions for the January 6 pardons. One is that, in contrast previous presidents, Trump's pardons were politically self-serving. He granted clemency to his most ardent supporters who committed crimes hoping to keep him in office; he had in fact campaigned on a promise to do so.¹³² Previous pardons have been criticized as self-dealing on weaker grounds.¹³³ Many speculated that Ford's pardon of Nixon was part of secret deal that led to Nixon nominating him for the vice-presidency;¹³⁴ President Bush pardoned executive

2021" while "Democrats ... remain largely in agreement that the riot was a violent threat to democracy for which Trump bears responsibility"); William A. Galston, *Polls show Americans are divided on the significance of January 6*, Brookings Inst'n, Jan. 6, 2023 (reporting similar polling data).

¹³⁰ See NPR, *Jan. 6 Archive*, supra note 107 (recounting Trump's January 6 statements to supporters who subsequently walked to the Capitol and his previous social media posts urging supporters to come to Washington that day).

¹³¹ See Weiner, Clement & Guskin, supra note 129.

¹³² See Megan Lebowitz, *Trump vows to 'free' Jan. 6 defendants as one of his first acts if elected*, NBC News, Mar. 12, 2024.

¹³³ Peterson, supra note 57, at 1238-39 (discussing pardons that "give rise to suspicions that the President is utilizing the power for personal and pecuniary gain by pardoning those with whom he has a close personal relationship or pardoning those who have contributed to his campaign").

¹³⁴ See Fisher, supra note 105, at 588 (noting many members of Congress suspected Ford's pardon of Nixon was part of a secret deal for his appointment to the vice-presidency); Peterson, supra note 57, at 1236 (noting "public suspicion persisted that President Ford had granted the pardon as a quid pro quo for President Nixon's agreement to resign or for other political reasons") (citing I.F. Stone, *On Pardons and Testimony*, N.Y. Times, Oct. 9, 1974, at 43). This was not the first pardon that some suspected as part of a secret deal for the vice-presidency. See P. Newman, supra note 122, at 184-85 (recounting accusations that Adams' pardons to Fries' Rebellion participants was part of a "coalition" deal in which he would serve as vice-president if, as he feared, he was not reelected).

branch officials linked to the Iran-Contra scandal who were close political allies.¹³⁵ In most if not all prior reconciliation pardons, presidents granted them recognizing that they might bear a political cost for doing so.¹³⁶

A second point is implicit in the first: the political cost to the president of granting a pardon reinforces the claimed sincerity of his public-regarding justification. A president who personally dislikes pardoning, say, military deserters, is himself bearing the kind of cost that he is asking opponents of impunity to accept in the name of reconciliation. In the process, he models magnanimity (along with the power to be magnanimous) and forsakes vindictiveness against wrongdoers.¹³⁷

¹³⁵ Ruckman, *supra* note 110, at 256 (according to poll data, 60% disapproved of Bush's pardons to officials involved in Iran-Contra scandal and 49% thought the pardons protected Bush's own interests); See also Robert L. Jackson & Ronald J. Ostrow, *Bush Pardons Weinberger, 5 Others in Iran-Contra: Act Called Cover-up*, L.A. Times, Dec. 25, 1992, at A1; David Johnston, *Bush Pardons 6 in Iran Affair, Averting a Weinberger Trial; Prosecutor Assails 'Cover-up'*, N.Y. Times, Dec. 25, 1992, at A1. Others pardoned included former National Security Advisor Robert C. McFarlane, former Assistant Secretary of State Elliot Abrams, Clair E. George, the former head of the CIA's covert operations division, Duane Clarridge, former head of the CIA's Western European Division, and Alan D. Fiers, retired chief of the CIA's Central American Task Force. Jackson & Ostrow, *supra*, at A17.

President Clinton was also widely criticized for last-minute pardons to wealthy supporters, political allies, and his brother. See Fisher, *supra* note 105, 593-97 (joining criticisms of Clinton's final 140 pardons); Peter Slevin & George Lardner, Jr., *Key to Presidential Pardon Is Access: Many Forgiven by Clinton Had Political or Personal Ties*, Wash. Post, Jan. 22, 2001, at A1; Gary Fields et al., *Deals & Deal Makers: Rich's Lawyer Didn't Follow Usual Channels to Win Pardon*, Wall St. J., Jan. 23, 2001, at C1. Daniel J. Hemel & Eric A. Posner, *Presidential Obstruction of Justice*, 106 Cal. L. Rev. 1277, 1304-05, 1324 (2018) (discussing controversial pardons by several presidents).

Some foreign courts reject "self-amnesties" when a government pardons its own officials. See Jackson, *supra* note 45, at 473 (observing that "[s]tates do grant amnesties to their own agents in bad faith" and endorsing this recognition as legitimate in ECtHR jurisprudence); *Barrios Altos v. Peru*, Inter-Am Ct. H.R. (ser. C) No. 75 (2001) para 43 (invalidating Peruvian amnesty law, stating self-amnesty laws are "manifestly incompatible with the aims and spirit of the [Inter-American Human Rights] Convention"); *Almonacid-Arellano v. Chile* (IACtHR 2006) para 120 (finding Chilean amnesty law violation human rights convention in part because it functioned as self-amnesty "since it was issued by the military regime to avoid judicial prosecution of its own crimes").

¹³⁶ See *supra* Part III.B.2.b (noting opposition to reconciliation pardons by several presidents).

¹³⁷ See George Washington's explanation for his Whiskey Rebellion pardons:

These circumstances have induced me to pardon generally the offenders ... and to extend forgiveness to those who had been adjudged to capital punishment. For ... it appears to me no less consistent with the public good than it is with my personal feelings to mingle in the operations of Government every degree of moderation and tenderness which the national justice, dignity, and safety may permit.

If Trump's pardons were ineffective for these reasons,¹³⁸ the fact remains that the country was highly polarized in general and, eventually, about the January 6 prosecutions in particular. Those are the conditions in which even well-grounded prosecutions can be perceived as vindictive or illegitimate.¹³⁹ Those are conditions in which governments often employ impunity in service of civic reconciliation. How could that tactic have been leveraged for January 6 wrongdoers?

The answer is to enlist a different pardoner—President Biden. Had Biden granted clemency to some January 6 offenders, the social valence of *his* pardons would be wholly different, and more line with reconciliation pardons from presidents from Washington, Jefferson and Lincoln to Ford and Carter. Biden pardons for January 6 offenders—whose conduct sought to wrongly prevent him from taking office—would hardly have been self-serving. He would have encountered strong objections and paid a cost with his supporters. But he would be sharing the cost of impunity that he would be asking others also to bear for the sake of civic peace. (His Justice Department might have dispensed

George Washington, *Seventh Annual Address to Congress*, Dec. 8, 1795, at Peters & Woolley, *supra* 118. See also William D. Pederson, *Amnesty and Presidential Behavior: A "Barberian" Test*, 7 Pres. Studies Q. 175, 180 (1977) (classifying Washington as an "active-positive" president who uses more magnanimous language in clemency, whereas "active-negative" such as Adams, Jackson and Johnson manifest more vindictiveness).

¹³⁸ For a judicial suggestion along these lines, see, e.g., *United States v. DeCarlo*, No. 21-00073 (BAH) (D.D.C. Jan. 22, 2025) (Howell, J.) ("No 'process of national reconciliation' can begin when poor losers ... are glorified for disrupting a constitutionally mandated proceeding in Congress and doing so with impunity. That merely ... undermines the rule of law.").

¹³⁹ For judicial assurances that January 6 convictions were well grounded, see *United States v. Banuelos*, No. 24-CR-135 (TSC) (D.D.C. Jan. 22, 2025) (Chutkan, J.) (dismissing indictment because defendant was pardoned but observing, "The Court does not discern—and neither party has identified—any defect in either the legal merits of, or the factual basis for, the Government's case.... [N]o pardon can change the tragic truth of what happened on January 6, 2021.... In hundreds of cases like this one over the past four years, judges in this district have administered justice without fear or favor. The historical record established by those proceedings must stand, unmoved by political winds"); *United States v. Box*, No. 22-413 (CKK) (D.D.C. Jan. 22, 2025) (Kollar-Kotelly, J.) (asserting the same); *DeCarlo*, No. 21-00073 (D.D.C. Jan. 22, 2025) (Howell, J.) ("[In] scores of criminal cases charging defendants for their criminal conduct both outside and inside the U.S. Capitol Building on January 6, 2021, ... charges were fully supported by evidence").

impunity through prosecutorial discretion as well, in part—as some officials urged—by not seeking to prosecute every minor offender.)¹⁴⁰

Moreover, Biden could have been more selective in his clemency grants—bypassing the worst offenders—and could have linked clemency to alternative mechanisms of accountability. Like previous presidents, he could have offered conditional pardons contingent upon recipients accepting the legitimacy of the 2020 election results. Washington conditioned insurrectionists' pardons on “assurances of submission to the laws of the United States ... bona fide given”; Lincoln conditioned pardons to Confederates on an oath of allegiance and recognition of “national authority.”¹⁴¹ Alternately or additionally, pardon recipients could have been required—on the model of truth and reconciliation commissions¹⁴²—to affirm the factual accuracy of criminal charges to the House January 6 Committee.¹⁴³

¹⁴⁰ Carol Leonnig & Aaron C. Davis, *INJUSTICE: HOW POLITICS AND FEAR VANQUISHED AMERICA'S JUSTICE DEPARTMENT* 110-45 (2025) (describing objections from some FBI and DOJ officials to pursuing minor January 6 offenders).

¹⁴¹ Pres. Washington, *Proclamation—Granting Pardon to Certain Persons Formerly Engaged in Violence and Obstruction of Justice in Protest of Liquor Laws in Pennsylvania, July 10, 1795* (granting pardons conditioned on “assurances of submission to the laws of the United States ... bona fide given”), in Peters & Woolley, *supra* note 118; Etridge, et al., *supra* note 58, at 10-11 (recounting Lincoln’s condition on pardons including a voluntary oath “with the purpose of restoring peace and establishing the national authority” and a requirement that deserters return to military service). Other presidents have also set requirements for pardons. See Ford, *Proclamation 4313*, *supra* note 107 (pardons conditioned on completing two years of community service).

¹⁴² An approximate U.S. analog to truth and reconciliation commissions is the Commission on Wartime Relocation and Internment of Civilians, which investigated the internment of Japanese citizens during World War II. See *PERSONAL JUSTICE DENIED: REPORT OF THE COMMISSION ON WARTIME RELOCATION AND INTERNMENT OF CIVILIANS* (1997) [<http://www.jstor.org/stable/j.ctvcwnm2s>]. The Commission’s report led to the Civil Liberties Act of 1988, Pub. L. 100-383 (Aug. 10, 1988), which apologized for Japanese internment and granted restitution for surviving victims.

¹⁴³ Note that, for those convicted prior to clemency, pardons do not erase the legal record of convictions. See *United States v. Crowell*, 374 F.3d 790, 794 (9th Cir. 2004) (pardon does not erase [the record of] a judgment of conviction nor underlying factual findings); *In re North*, 62 F.3d 1434, 1437 (D.C. Cir. 1994) (“a pardon does not blot out guilt or expunge a judgment of conviction”); *United States v. Noonan*, 906 F.2d 952, 955 (3d Cir. 1990) (same); see also *United States v. Arpaio*, 2017 WL 4839072 (D. Ariz. 2017), affirmed, 951 F.3d 1001 (9th Cir. 2020) (declining to vacate guilty verdict on which judgment had not been entered prior to defendant’s pardon).

Granted, the familiar arguments against impunity resonated strongly in the wake of the Capitol protest. The riot was widely seen as an attack on democracy, initially even by many Republicans. Arguments for holding actors accountable for unprecedented wrongdoing, and reaffirming the rule of law, were strong.¹⁴⁴ Steven Koh, for one, has forcefully argued that *not* prosecuting January 6 offenders “would be deeply corrosive—indeed, perhaps fatal—to any civil society” because “bonds of trust ... would be weakened or eviscerated.”¹⁴⁵

The counterargument in favor of impunity starts with the recognition that by 2024, when Republican opinion had shifted sharply against January 6 prosecutions, social and political context for prosecutions had changed. In a sharply divided polity, many will view criminal law accountability, in Andrew Johnson’s phrase, as “retaliatory and vindictive.”¹⁴⁶ President Ford justified his pardon of Richard Nixon largely on his conclusion that prosecuting Nixon would fracture civic peace: “The prospect of such trial will cause prolonged and divisive debate over the propriety of exposing [Nixon] to further punishment and degradation,” and thereby “the tranquility to which this nation has been restored ... could be irreparably lost.”¹⁴⁷ When political dissension undercuts (for many) the legitimacy of ordinary criminal process, there are no good options. Those are circumstances in which presidents consider, and often grant, reconciliation pardons. Biden’s position gave him much more legitimacy than Trump had to make that call. Moreover, the gravity of Capitol riot

¹⁴⁴ On initial Republican views that the riot was an “attack on democracy,” Weiner, Clement & Guskin, *supra* note 129. See also *DeCarlo*, No. 21-00073 (D.D.C. Jan. 22, 2025) (Howell, J.) (characterizing Capitol riot offenders as “poor losers ... are glorified for disrupting a constitutionally mandated proceeding in Congress” and criticizing pardons for granting them “impunity ... [t]hat merely ... undermines the rule of law.”).

¹⁴⁵ See Koh, *supra* note 124, at 1837-38.

¹⁴⁶ Johnson, Proclamation 167, *supra* note 118 (justifying post-Civil War pardons with the argument that “a retaliatory or vindictive policy, attended by unnecessary ... penalties... could only tend to hinder reconciliation”).

¹⁴⁷ Ford, Proclamation 4311, *supra* note 120 (also stating “The prospects of such trial will cause prolonged and divisive debate over the propriety of exposing to further punishment and degradation a man who has already paid the unprecedented penalty of relinquishing the highest elective office of the United States.”).

wrongdoing as an attack on democratic institutions are not, in a key respect, as unique as they seem once juxtaposed to past occasions for reconciliation grants of clemency. Several presidents pardoned Army desertion, an act that undermines a core government capacity. More notably, Washington, Adams, and Johnson pardoned violent insurrectionists or Confederates for treason,¹⁴⁸ the gravest offense against government authority. Finally, as some presidents have recognized, acts of clemency demonstrate the executive's power. Especially in the wake of civil unrest, they affirm a government's authority. In the wake of criminal conduct that sought to undermine or overthrow it, pardons rest on confidence that the government is secure.¹⁴⁹

c. Pardon versus prosecution for Trump

The same considerations that support pardoning (or declining to prosecute) many Capitol riot participants apply to the Biden administration's decision whether to prosecute then-former President Trump. Compelling evidence and rule-of-law concerns,¹⁵⁰ among other reasons, counseled for holding Trump criminally accountable for his conduct. But the broader context of sharp partisan polarization, especially about Trump's January 6 conduct, cut the other way. Even though Trump's role on January 6 was initially viewed negatively even by many Republicans, that changed fairly quickly.¹⁵¹ In that polarized context, federal indictments of Trump—for January 6 events and for

¹⁴⁸ See Etridge, *supra* note 58, at 7-8 & 12.

¹⁴⁹ See *id.* at 18; P. Newman, *supra* note 122, at 146 (noting President Adams assessed that prosecution followed by a pardon would “demonstrate the authority ... [and] display the power and the compassion of the federal government”). *cf.* *Burdick v. United States*, 236 U.S. 79, 94 (1915) (A pardon “carries an imputation of guilt; acceptance a confession of it.”).

¹⁵⁰ See U.S. Dep't of Justice, *Special Counsel Jack Smith Statement*, June 9, 2023 (asserting Trump indictment demonstrates “our nation's commitment to the rule of law and shows “one set of laws in this country ... apply to everyone”), at <https://www.justice.gov/archives/sco-smith/speech/special-counsel-jack-smith-delivers-statement>.

¹⁵¹ See Weiner, Clement & Guskin, *supra* note 129 (reporting, based on survey data, that “Republicans [in 2024] are more sympathetic to those who stormed the U.S. Capitol and more likely to absolve Donald Trump of responsibility for the attack than they were in 2021”); Bradley Jones, *Fewer Americans now say Trump bears a lot of responsibility for the Jan. 6 riot*, Pew Res. Center, Feb. 8, 2022.

retaining classified documents—had the effect of *increasing* his political support.¹⁵² That can only happen when political divisions have undercut criminal law’s legitimacy—when criminal law enforcement has lost its capacity, in this context, to reinforce social cohesion. Instead, its social effect, as Ford predicted from a prosecution of Nixon, prompted a “prolonged and divisive debate” from which national “tranquility ... could be irreparably lost.”¹⁵³ In a context of extreme political or sectarian dissension, impunity preserves the criminal law’s legitimacy by withholding its enforcement.

Here, as in other settings, impunity for Trump, by pardon or declination, might have been accompanied by other mechanisms of accountability.¹⁵⁴ Some were beyond President Biden’s control, such as impeachment or congressional censure. Others would seem implausible, such as a pardon conditioned on Trump’s acceptance of the 2020 election results. The most feasible option would have adapted the model of truth and reconciliation commissions. A pardon or declination could have followed release of the House January 6 Committee report¹⁵⁵ and justified impunity on the familiar grounds of past reconciliation pardons. That strategy documents the historical record in the absence of

¹⁵² See Anthony Zurcher, *Why Trump’s poll lead went up after criminal indictments*, [BBC.com](https://www.bbc.com/news/health-60888888), Aug. 1, 2023; Gary C. Jacobson, *Popular Reactions to Donald Trump’s Indictments and Trials and their Implications for the 2024 Election* at 6 (ASPA [preprint](https://www.aspa.org/research/2024/09/01/popular-reactions-to-donald-trumps-indictments-and-trials-and-their-implications-for-the-2024-election/), Sept. 2024) (noting Trump’s “favorability ratings among Republicans did not begin to recover until his federal indictments in the summer of 2023, rising through August 2024 to their highest level since the fall of 2020”); see also Andrew O’Donohue, *Trump’s Classified Documents Case Moves Public Opinion. Now Voters Are Unlikely to Hear It*, LawFare, July 17, 2024 (discussing mixed polling data on the effects of various criminal charges against Trump), at <https://www.lawfaremedia.org/article/trump-s-classified-documents-case-moves-public-opinion.-now-voters-are-unlikely-to-hear-it->.

I leave aside state prosecutions of Trump in Georgia and New York, where state clemency powers differ from the federal model. See Ga. Const. art. IV § 2 (clemency power vested in Board of Pardon and Paroles); N.Y. Const. art. IV § 4 (governor’s post-conviction pardon power “subject to such regulations as may be provided by law”).

¹⁵³ Ford, Proclamation 4311, *supra* note 120.

¹⁵⁴ Recall that President Ford justified his pardon of Nixon by pointing to Nixon’s unprecedented resignation from the presidency as an “unprecedented penalty.” *Id.*

¹⁵⁵ See *Final Report of the Select Committee to Investigate the January 6th Attack on the United States Capitol* (117th Cong., Second Sess., House Rpt. 117-663, Dec. 22, 2022).

criminal trial evidence.¹⁵⁶ As in past reconciliation clemency grants, it concedes criminal law's divisive social effect in present circumstances. It lacks any suggestion of self-interest. And it affirms the government's power and authority by dispensing leniency to those who wrongfully challenged it.

3. *Presidential immunity*: *Trump v. United States*

Finally, the lessons of reconciliation pardons in times of political dissension provides a lens through which to reevaluate a different kind of impunity granted from a different institution—the Supreme Court's recognition of presidential immunity in *Trump v. United States*.¹⁵⁷

That decision held that a president enjoys absolute immunity for crimes committed through “conduct within his exclusive sphere of constitutional authority,” understood as the “exercise of his core constitutional powers”¹⁵⁸ Official acts outside that sphere of exclusive authority but “within the outer perimeter of his official responsibility”¹⁵⁹ enjoy presumptive criminal immunity, which the government can overcome only by demonstrating that a prosecution “would pose no ‘dangers of intrusion on the authority and functions of the Executive Branch.’”¹⁶⁰ That immunity is buttressed by additional protection: in deciding whether acts are official, “courts may not inquire into the President's motives.”¹⁶¹

¹⁵⁶ See Jessica Roth, *Prosecutorial Declination Statements*, 110 J. Crim. L. & Criminology 447 502-03, 508-13, 541-49 (2020) (describing how prosecutors can use declination statements, or rely on reports from other institutions, to serve accountability and “history-keeping” interests in lieu of prosecution).

¹⁵⁷ 603 U.S. 593 (2024).

¹⁵⁸ *Id.* at 609 & 606. That sphere includes the core “conclusive and preclusive” powers of the presidency, such as granting pardons and removing executive officers, that other branches of government may not restrict. *Id.* at 607-09.

¹⁵⁹ *Id.* at 614.

¹⁶⁰ *Id.* at 615. Immunity does not extend to unofficial acts. *Id.* at 615.

¹⁶¹ *Id.* at 618 (motive inquiries would “would seriously cripple the proper and effective administration of public affairs as entrusted to the executive branch”); see also *id.* at 668 (Sotomayor, J., dissenting) (“Under [the majority's] rule, any use of official power for any purpose, even the most corrupt purpose indicated by objective evidence of the most corrupt motives and intent, remains official and immune.”).

The majority's opinion is focused on separation of powers; its analysis is largely a functional balancing of competing interests.¹⁶² It views immunity as critical "to encourage energetic, vigorous, decisive, and speedy execution of the laws."¹⁶³ "The justifying purposes of the immunity ... are to ensure that the President can undertake his constitutionally designated functions effectively, free from undue pressures or distortions."¹⁶⁴

On the majority's account, presidential immunity shares with other forms of impunity that it rests on an instrumental justification. Criminal law impunity always trades off criminal law's core purposes of holding the guilty the account. The Court is explicit on this point. It concedes the "countervailing interests at stake"—criminal law's capacity "to redress 'a wrong to the public'" and the "compelling 'public interest in fair and effective law enforcement.'"¹⁶⁵ All forms of impunity prioritize some competing public interest over criminal law accountability. In this context, it is facilitating "an energetic and vigorous President."¹⁶⁶

The project here is not to add to the critical assessments of the *Trump* decision's reasoning.¹⁶⁷ The focus is instead to assess the Court's creation of

¹⁶² The Court concedes its immunity doctrine has no basis in constitutional text. See *id.* at 637-38.

¹⁶³ *Id.* at 610, quoting *Clinton v. Jones*, 520 U.S. 681, 712 (1997) (Breyer, J., concurring in judgment). Presidential "hesitation to execute the duties of his office fearlessly and fairly" due to a risk of later prosecution "raises 'unique risks to the effective functioning of government.'" *Id.* at 613, quoting *Nixon v. Fitzgerald*, 457 U. S. 731, 751 (1982).

¹⁶⁴ *Id.* at 615 (internal quotation marks omitted); see *id.* ("[I]t [is] the nature of the function performed ... that inform[s] our immunity analysis," quoting *Forrester v. White*, 484 U. S. 219, 229 (1988)).

¹⁶⁵ *Id.* at 614, quoting *Huntington v. Attrill*, 146 U. S. 657, 668 (1892) and *Trump v. Vance*, 591 U. S. 786, 808 (2020).

¹⁶⁶ *Id.* at 639.

¹⁶⁷ For a trenchant originalist critique, see Saikrishna Bangalore Prakash, *The Fearless Executive, Crime, and the Separation of Powers*, 111 Va. L. Rev. 1 (2025). For critical assessments from other perspectives, see, e.g., Shalev Roisman, *Trump v. United States and the Separation of Powers*, 173 U. Pa. L. Rev. Online 33 (2025); Jack Landman Goldsmith, *The Presidency After Trump v. United States*, (March 02, 2025 draft) available at <http://dx.doi.org/10.2139/ssrn.5162059>; Akhil Reed Amar, *Something Has Gone Deeply Wrong at the Supreme Court*, *The Atlantic* (Jul. 2, 2024); Laurence H. Tribe, *The Trump Decision Reveals Deep Rot in the System*, *N.Y. Times* (Jul. 1, 2024); Neil Siegel, *High Court's Immunity*

presidential immunity as a policy choice between impunity and accountability. Tellingly, part of the majority's motivation was that federal prosecution was likely to operate—and implicitly, with Trump's prosecution, had already begun to operate—as a tool of partisan vindictiveness. Political polarization, Roberts strongly implied, had already compromised the integrity of criminal law enforcement. Responding to the dissent, Roberts dismissed the concern that immunity will incentivize presidential criminality. Instead, the “*more likely prospect*,” Roberts insisted, is that absent immunity, successive presidents will perpetually prosecute their predecessors until “Executive Branch ... cannibalizes itself Without immunity, ... prosecutions of ex-Presidents could quickly become routine,” yielding “a cycle of factional strife” that enfeebles the presidency.¹⁶⁸

In this vision, a polity in a durable state of dissension yields a government unable to resist politically motivated prosecutions. Criminal law enforcement is retaliatory and vindictive. It is, in short, a vision of political and social circumstances that many presidents have recognized as the conditions for reconciliation pardons and declination. But in the Court's view, executive branch officials have lost the capacity to recognize the occasions on which they should opt for impunity over accountability. So the Court steps in to mandate presidential impunity.

On this account, *Trump v. United States* can be understood as resting on the same justifications as reconciliation pardons. Assuming the Court imagines that prosecutions of ex-presidents would be factually and legally well-grounded (as charges against Trump surely were), the *Trump* Court imposed the same policy choice in perpetuity that presidents make case-by-case: when divisive circumstances deprive criminal law enforcement of its

Case Protects the President, Not Democracy, Bloomberg (Jul. 5, 2024); Kate Shaw, *The Supreme Court Creates a Lawless Presidency*, N.Y. Times (Jul. 2, 2024); Michael Stokes Paulsen, *A Lawless Court Gives Us a Lawless Presidency*, Public Discourse (Jul. 22, 2024).

¹⁶⁸ 603 U.S. at 640 (emphases added) (internal quotation marks omitted).

legitimacy, the “public interest in fair and effective law enforcement” and in “redress[ing] a wrong to the public”¹⁶⁹ must give way to impunity in the hopes of national tranquility and civic peace. Roberts’ opinion shares President Ford’s recognition, in pardon of Nixon, that regardless of the strength and nature of the charges, prosecuting a president is a deeply political decision with political consequences.¹⁷⁰ Decisions to prosecute presidents should not be based solely on criminal law’s purpose of holding wrongdoers to account; those decisions inevitably have political effects. At a high level of generality, *Trump v. United States* represents a familiar policy choice on justifications with a long pedigree.

On the other hand, *Trump* is singular in that it is a grant of impunity from the Court and through constitutional doctrine. Both those features provide reasons for concern. Other mechanisms of impunity that respond to political circumstances and social dissension—clemency and prosecutorial discretion—are powers of the executive branch. Presidents have the advantage of being able to grant impunity case by case, in response to particular circumstances. And a political official is better situated to assess political circumstances that are an underlying justification for grants of impunity. The Court, by contrast, is confined to defining a constitutional rule that provides impunity in perpetuity based on its inferences from present-day politics. Judicial doctrine forecloses reassessments of competing interests at the nature of risks and interests change.¹⁷¹ Moreover, presidents dispense impunity retrospectively, for past conduct. Through constitutional doctrine, the Court

¹⁶⁹ *Id.* at 614 (internal quotation marks omitted).

¹⁷⁰ The same reality has long been recognized in the context of post-war tribunals in which former heads of state and other high officials are prosecuted for wartime crimes committed through their official acts. See Judith Shklar, *LEGALISM* 143-70, 209-20 (1964); Hannah Arendt, *EICHMANN IN JERUSALEM: A REPORT ON THE BANALITY OF EVIL* 253-59, 274-75 (1964); Moyn, *supra* note 53, at 71-75, 87.

¹⁷¹ Judicial interpretations of human rights conventions that *restrict* impunity face the same criticisms. See Jackson, *supra* note 45, at 467-71 (making similar arguments regarding ECtHR jurisprudence on anti-impunity duties to prosecute that limit amnesty policies).

grants impunity prospectively.¹⁷² Although Roberts dismisses the concern, prospective immunity by its nature poses a greater risk of incentivizing future wrongdoing.

On this view, the criticism of *Trump* is not simply that it granted criminal immunity to presidents. It is that the holding foreclosed consideration of the difficult political and policy tradeoffs inherent in choices between impunity and accountability. It shut out finer-grained alternatives that retained a role for the political branches in those decisions. The Court might have opted for a doctrine, for example, that permitted charging ex-presidents only for crimes that Congress has explicitly said apply to the president,¹⁷³ only when prosecution justified by a compelling public interest,¹⁷⁴ or only for “grave” offenses¹⁷⁵ perhaps with a high mens rea requirement of corrupt motive.¹⁷⁶ It

¹⁷² The closest analog to presidential immunity as prospective immunity attached to an official role is diplomatic immunity. But diplomatic immunity is more contingent at least in the sense that the diplomat’s home country can waive immunity, and because it is based in statute and treaties nominally subject to revision. See Diplomatic Relations Act, 22 U.S.C. §§ 254a-254d (2024); VCDR, *supra* note 9, at art. 39 ¶ 2; see also Y. Zabyelina, *supra* note 59, at 41 (describing scope of official immunity under international law). Also, customary international law provides absolute immunity to heads of state, heads of government, and foreign ministers, although that has not been codified by treaty. See *Id.* at 36-55.

¹⁷³ See Prakash, *supra* note 166, at 55-64 (arguing for this idea).

¹⁷⁴ Balancing tests abound in constitutional law. See, e.g., *Citizens United v. FEC*, 558 U.S. 310, 359 (2010) (government has a compelling interest in preventing only “quid pro quo” corruption); *Hobby Lobby Stores, Inc.*, 573 U.S. 682, 691-92 (2014) (“Under [Religious Freedom Restoration Act], a Government action that imposes a substantial burden on religious exercise must serve a compelling government interest.... But ... it must also constitute the least restrictive means of serving that interest”). See generally Jamal Greene, *Foreword: Rights As Trumps?*, 132 Harv. L. Rev. 28, 86 (2018) (“In equal protection, fundamental rights, free speech, and criminal procedure cases alike, the Court has relied on heuristics and balancing tests derived through common law iteration rather than textual analysis.”).

¹⁷⁵ Cf. See Vienna Convention on Consular Relations, 21 U.S.T. 261, 596 U.N.T.S. 261 (1963; entered into force Mar. 19, 1967; entered into force with respect to the United States Nov. 24, 1969) art. 41 ¶ 1 (denying immunity to consular officials only for “grave crime[s]”).

¹⁷⁶ Prior to the *Trump* decision, the consensus was that presidents could be prosecuted at least for certain corruptly motivated official acts, including corrupt exercises of core powers such as pardons. See Office of Legal Counsel, *Application of 28 U.S.C. § 458 to Presidential Appointment of Fed. Judges*, 19 Op. O.L.C. 350, 357 n.11 (1995) (stating that application of the bribery offense, 18 U.S.C. § 201, to the president is constitutional, citing Article II §§ 1 & 4), [<https://perma.cc/26LD-SKAZ>]; Saikrishna Bangalore Prakash, *Prosecuting and Punishing Our Presidents*, 100 Tex. L. Rev. 55 (2021); see Bob Bauer & Jack Goldsmith, *AFTER TRUMP: RECONSTRUCTING THE PRESIDENCY* 126 (2020) (“[A] pardon does not afford the president, as the grantor, immunity from commission of a crime in connection with granting

might have prodded Congress to permit presidential prosecutions only after a president has been censured by one or both houses of Congress. Or in terms of the Court's concern about presidential "hesitation" in exercising core powers, it might have left room for distinctions such as comparatively less fear about hesitating to grant pardons (enabling sanctions for corruptly granted ones) and comparatively more about hesitating to, say, remove executive officers or recognize foreign countries.¹⁷⁷ In these ways and others, it is possible to imagine an immunity doctrine in which the political branches still had a role in such questions. Nonetheless, the Court was on solid ground in its fundamental recognition that political considerations, especially those arising from deep political dissensus, can be sufficient reason to forgo punishing even grave wrongdoing.

CONCLUSION

Impunity challenges the criminal law principle that culpable wrongdoing should be punished, and doing so through fair process is necessary and sufficient for criminal law's legitimacy. The truth is that impunity for the culpable is also critical to the legitimacy not only of criminal law but to the larger state. Impunity powers and practices confirm that wide range of competing public interests sometimes take precedence over criminal law's internal purposes. They always have. The most significant, if contentious, examples are executive pardons in the interest of national reconciliation when the public is deeply divided over matters salient to particular acts of criminal wrongdoing, particularly acts that challenge some aspect of state policy or authority. Presidents from Washington to Trump have granted reconciliation pardons even for the most serious offenses and objections to state authority.

a pardon."); Albert W. Alschuler, *Limiting the Pardon Power*, 63 Ariz. L. Rev. 545, 566-68 (2021); Frank O. Bowman, *Presidential Pardons and the Problem of Impunity*, 23 N.Y.U. J. Legis. & Pub. Pol'y 425, 472, 475 (2021); Daniel J. Hemel & Eric A. Posner, *Presidential Obstruction of Justice*, 106 Cal. L. Rev. 1277, 1283 & 1324-27 (2018).

¹⁷⁷ *Trump*, 603 U.S. at 609.

They do so because they recognize that social and political circumstances can deprive criminal law of its public legitimacy and capacity to reinforce social cohesion by affirming shared understandings of wrongdoing. In a highly polarized polity, even fair criminal law enforcement against the guilty can be received as vindictive; it can aggravate social dissension; it undermines domestic “tranquility.” Recognizing these insights from the history of pardons—confirmed in the United States and elsewhere in the use of amnesty in post-war and post-insurrection settings—suggests that impunity, properly implemented, was a plausible response in the wake of January 6, both for Capitol riot participants and the president who encouraged their conduct.
